

# C l e a n - r o o m   r e v i s i o n   a t l a s

S Q E 1   과목별   쟁점   총망라   지도   v 0 . 1

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S Q E 1   I s s u e   A t l a s   v 0 . 1   |   C o v e r

# Source method

공식 출처 사용 방식

이 지도는 원문을 길게 옮기는 자료가 아니라, 공식 기준과 공개 원자료를 어디에 연결해야 하는지 보여주는 색인입니다.

출처 URL 이 지도에서의 역할

SQE1 specification

<https://sqe.sra.org.uk/assessments/sqe1-assessments/sqe1-closed-book-functioning-legal-knowledge> 기준

Single best answer

<https://sqe.sra.org.uk/assessments/sqe1-assessments/sqe1-lead-in-five-plausible-options> 구조

Sample questions

<https://sqe.sra.org.uk/assessments/sqe1-assessments/sqe1-sample-questions> 난이도, 시간 압박 감각

SQE reports <https://sqe.sra.org.uk/sqe-results/reports> 소견서 판단

SRA Standards <https://www.sra.org.uk/solicitors/standards-professional-conduct-overlay>

SQE reports와 sample questions는 문항 복원이나 유출 추정에 쓰지 않습니다. 오답률, 압박, 난이도, 준비 강도, 훈련 방식 판단에만 씁니다.

SQE1 Issue Atlas v0.1 | Source method

# Revision loop

## 7회독 사용법

1회독: 과목별 dashboard에서 전체 쟁점 이름만 소리 내어 읽습니다.

2회독: trigger map을 보며 어떤 단어가 어떤 rule을 여는지 표시합니다.

3회독: trap column만 가리고 스스로 함정을 말합니다.

4회독: 한국변호사 주의점을 읽고 한국법식 직관을 제거합니다.

5회독: issue card를 보며 30초 안에 “rule → next step”을 말합니다.

6회독: 문제집 오답과 R / F / E / P / ETH 코드를 연결합니다.

7회독: last-day checklist만 보고 빈칸 없이 설명합니다.

이 지도는 외우는 순서를 정해주는 자료입니다. 모르는 부분을 발견하면 교재 v0.4의 해당 과목 rule sheet와 문제집 v0.2의 해당 mock 문제로 돌아갑니다.

SQEL Issue Atlas v0.1 | Revision loop

# FLK1

## FLK1 Overview

FLK1 전체 회독표입니다. 과목을 따로 보되, 실제 문제에서는 절차·윤리·실체법이 섞일 수 있다는 점을 계속 기억합니다.

과목 핵심 쟁점 수 세부 주제 수 풀이 전략

Legal System of England and Wales 6 15 문제에서 court, appeal, interpretation, civil/criminal distinction이 보이면 먼저 관할과 법원 다음 적용 법원을 좁힌다.

Legal Services and Professional Conduct 6 15 문제에서 압박, 누락 statement, conflict, confidentiality, client money, vulnerable ethics flag를 세운다.

Constitutional and Administrative Law and EU Law 6 15 public consultation, legitimate expectation, proportionality, human rights law issue map을 펼친다.

Contract Law 6 15 문제를 보면 먼저 계약이 생겼는지, 다음으로 어떤 term인지, 그 다음 breach와 remedy를 차례로 본다.

Tort 6 15 피해자, 가해자, duty, breach, causation, remoteness, contributory negligence를 세운다.

Dispute Resolution 6 15 항상 '지금 절차가 어느 단계인가'를 먼저 잡는다. 그 다음 deadline, document, court power, cost risk를 본다.

Business Law and Practice 6 15 business medium, authority, tax consequence를 한 번에 점검한다.

SQE1 Issue Atlas v0.1 | FLK1 overview

# FLK2

## FLK2 Overview

FLK2 전체 회독표입니다. 과목을 따로 보되, 실제 문제에서는 절차·윤리·실체법이 섞일 수 있다는 점을 계속 기억합니다.

과목 핵심 쟁점 수 세부 주제 수 풀이 전략

Land Law 6 15 legal/equitable, registered/unregistered, leasehold/freehold 나누면 답이 보인다.

Property Practice 6 15 client objective, stage of transaction, contract, completion, post-completion 순서로 정리한다.

Wills and the Administration of Estates 6 15 will valid? testate/intestate? estate solvent? tax issue? personal representative power of attorney?

Trusts 6 15 trust가 성립했는지, trustee가 누구인지, beneficiary가 누구인지, remedies가 무엇인지 묻는다.

Solicitors Accounts 6 15 돈이 누구 돈인지, 어디에 있어야 하는지, 언제 옮길 수 있는지, 기록과 통지가 필요한지 순서로 본다.

Criminal Liability 6 15 offence, actus reus, mens rea, causation 순서로 체크한다.

Criminal Law and Practice 6 15 arrest/custody, advice, bail, allocation, trial, sentence 순서로 현재 위치를 잡는다.

SQE1 Issue Atlas v0.1 | FLK2 overview

## 1. Legal System of England and Wales Dashboard

Legal System of England and Wales 의 쟁점 대시보드입니다. 이 장의 목적은 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다.

핵심 쟁점

Sources of law

Precedent

Statutory interpretation

Court structure

Human rights

ADR and settlement

공개 권위자료 앵커

Constitutional Reform Act 2005 (Statute)

Human Rights Act 1998 (Statute)

Practice Statement [1966] 1 WLR 1234 (Case)

Pepper v Hart [1993] AC 593 (Case)

R (Miller) v Secretary of State for Exiting the European

강사식 한 줄 전략

문제에서 court, appeal, precedent, statutory interpretation, distinction이 보이면 먼저 관할과 법원을 정하고, 그 다음 적용 법원을 좁힌다.

SQE1 Issue Atlas v0.1 | Legal System of England and Wales

## Legal System of England and Wales Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

## 쟁점 핵심 법리 Trigger Trap

Sources of law Primary legislation, delegated legislation different jobs. First identify the source before applying guidance, case, tribunal Treating guidance or policy as binding law.

Precedent The ratio of a higher court binds lower courts. other hierarchies may persuade but do not bind in the same of Appeal, Supreme Court Selecting the answer with a famous checking the court hierarchy.

Statutory interpretation Start with the words, definition purposive reasoning where the statutory scheme requires purpose, parliamentary material Ignoring the definition meaning into a legal term.

Court structure Forum and appeal route depend on subject and permission requirements, not only on perceived seriousness county court, High Court Assuming every important case starts

Human rights Human Rights Act issues usually require identifying act and the relevant Convention right before remedy. public compatibility, proportionality Applying human rights analysis dispute without a public law route.

ADR and settlement A competent solicitor advises on proper resolution, cost, risk and client objectives before escalating settlement, proportionality, cost Issuing proceedings before objective and proportionality.

# FLK1

## Legal System of England and Wales Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

statute Sources of law Primary legislation, delegated legislation, secondary legislation  
precedent do different jobs. First identify the source before applying the law  
guidance or policy as if it were automatically binding law

regulation Sources of law Primary legislation, delegated legislation, secondary legislation  
precedent do different jobs. First identify the source before applying the law  
guidance or policy as if it were automatically binding law

guidance Sources of law Primary legislation, delegated legislation, secondary legislation  
precedent do different jobs. First identify the source before applying the law  
guidance or policy as if it were automatically binding law

case Sources of law Primary legislation, delegated legislation, secondary legislation  
do different jobs. First identify the source before applying the law  
or policy as if it were automatically binding law

tribunal Sources of law Primary legislation, delegated legislation, secondary legislation  
precedent do different jobs. First identify the source before applying the law  
guidance or policy as if it were automatically binding law

ratio Precedent The ratio of a higher court binds lower courts  
from other hierarchies may persuade but do not bind in the same way  
answer with a famous case name without checking the court's decision

obiter Precedent The ratio of a higher court binds lower courts  
decisions from other hierarchies may persuade but do not bind in the same way  
Selecting the answer with a famous case name without checking the court's decision

Court of Appeal Precedent The ratio of a higher court binds lower courts  
decisions from other hierarchies may persuade but do not bind in the same way  
Selecting the answer with a famous case name without checking the court's decision

Supreme Court Precedent The ratio of a higher court binds lower courts  
decisions from other hierarchies may persuade but do not bind in the same way  
Selecting the answer with a famous case name without checking the court's decision

defined term Statutory interpretation Start with the words, then look at the  
use purposive reasoning where the statutory scheme requires a  
definition section or reading a lay meaning into a legal term

ambiguity Statutory interpretation Start with the words, then look at the  
use purposive reasoning where the statutory scheme requires a  
definition section or reading a lay meaning into a legal term

purpose Statutory interpretation Start with the words, then look at the



purposive reasoning where the statutory section or reading a lay meaning into a legal term.

parliamentary material Statutory interpretation Start with and context; use purposive reasoning where the statutory Ignoring the definition section or reading a lay meaning

appeal Court structure Forum and appeal route depend on procedure and permission requirements, not only on percentage every important case starts in the High Court.

permission Court structure Forum and appeal route depend on procedure and permission requirements, not only on percentage every important case starts in the High Court.

county court Court structure Forum and appeal route depend on procedure and permission requirements, not only on percentage every important case starts in the High Court.

High Court Court structure Forum and appeal route depend on procedure and permission requirements, not only on percentage every important case starts in the High Court.

public authority Human rights Human Rights Act issues usual public authority act and the relevant Convention right be rights analysis to a purely private dispute without a public

compatibility Human rights Human Rights Act issues usual public authority act and the relevant Convention right be rights analysis to a purely private dispute without a public

proportionality Human rights Human Rights Act issues usual public authority act and the relevant Convention right be rights analysis to a purely private dispute without a public

mediation ADR and settlement A competent solicitor advises on resolution, cost, risk and client objectives before escalation before considering client objective and proportionality.

settlement ADR and settlement A competent solicitor advises on resolution, cost, risk and client objectives before escalation before considering client objective and proportionality.

proportionality ADR and settlement A competent solicitor advises on dispute resolution, cost, risk and client objectives before escalation proceedings before considering client objective and proportionality.

cost ADR and settlement A competent solicitor advises on resolution, cost, risk and client objectives before escalation before considering client objective and proportionality.

SQE1 Issue Atlas v0.1 | Legal System of England and Wales

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Sources of law 한국법식으로 '조문을 먼저 찾고 판례를 보충한다'고만 접근하면 binding precedent의 힘을 과소평가하기 쉽다. Treating guidance or policy as automatically binding law.

Precedent 한국법식으로 '조문을 먼저 찾고 판례를 보충한다'고만 접근하면 binding precedent의 힘을 과소평가하기 쉽다. Selecting the answer with a famous case without checking the court hierarchy.

Statutory interpretation 한국법식으로 '조문을 먼저 찾고 판례를 보충한다'고만 접근하면 binding precedent의 힘을 과소평가하기 쉽다. Ignoring the definition or reading a lay meaning into a legal term.

Court structure 한국법식으로 '조문을 먼저 찾고 판례를 보충한다'고만 접근하면 binding precedent의 힘을 과소평가하기 쉽다. Assuming every important case starts from the Court of Appeal.

Human rights 한국법식으로 '조문을 먼저 찾고 판례를 보충한다'고만 접근하면 binding precedent의 힘을 과소평가하기 쉽다. Applying human rights analysis to a private dispute without a public law route.

ADR and settlement 한국법식으로 '조문을 먼저 찾고 판례를 보충한다'고만 접근하면 binding precedent의 힘을 과소평가하기 쉽다. Issuing proceedings before considering the client objective and proportionality.

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Statute Constitutional Reform Act 2005 judicial independence  
context <https://www.legislation.gov.uk/>

Statute Human Rights Act 1998 ordinary litigation and public  
issues <https://www.legislation.gov.uk/>

Case Practice Statement [1966] 1 WLR 1234 Supreme Court/High Court  
from precedent <https://www.bailii.org/>

Case Pepper v Hart [1993] AC 593 limited use of parliamentary  
interpretation <https://www.bailii.org/>

Case R (Miller) v Secretary of State for Exiting the European Union  
constitutional limits on prerogative power <https://www.bailii.org/>

SQE1 Issue Atlas v0.1 | Legal System of England and Wales

# FLK1

Legal System of England and Wales Issue Cards 1 - 2

Sources of law

Rule: Primary legislation, delegated legislation and binding precedents. First identify the source before applying it.

Trigger: statute, regulation, guidance, case, tribunal

Trap: Treating guidance or policy as if it were automatically binding

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Precedent

Rule: The ratio of a higher court binds lower courts; obiter dicta and other hierarchies may persuade but do not bind in the same way.

Trigger: ratio, obiter, Court of Appeal, Supreme Court

Trap: Selecting the answer with a famous case name without checking the hierarchy.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Legal System of England and Wales

# FLK1

Legal System of England and Wales Issue Cards 3 - 4

Statutory interpretation

Rule: Start with the words, definitions and context; use the statutory scheme requires it.

Trigger: defined term, ambiguity, purpose, parliamentary

Trap: Ignoring the definition section or reading a lay me

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Court structure

Rule: Forum and appeal route depend on subject matter, va permission requirements, not only on perceived seriousness

Trigger: appeal, permission, county court, High Court

Trap: Assuming every important case starts in the High Co

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Legal System of England and Wales

# FLK1

Legal System of England and Wales Issue Cards 5 - 6

## Human rights

Rule: Human Rights Act issues usually require identifying the relevant Convention right before remedy.

Trigger: public authority, compatibility, proportionality

Trap: Applying human rights analysis to a purely private law route.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

## ADR and settlement

Rule: A competent solicitor advises on proportionate dispute resolution and client objectives before escalating.

Trigger: mediation, settlement, proportionality, cost

Trap: Issuing proceedings before considering client objectives

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Legal System of England and Wales

# FLK1

## Legal System of England and Wales Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Sources of law and hierarchy ☐ rule ☐ trigger ☐ trap ☐
- 2 Court structure and routes of appeal ☐ rule ☐ trigger ☐
- 3 Binding precedent and ratio decidendi ☐ rule ☐ trigger ☐
- 4 Statutory interpretation ☐ rule ☐ trigger ☐ trap ☐ ethics
- 5 Civil and criminal procedure distinction ☐ rule ☐ trigger ☐ ethics/procedure
- 6 Judicial independence and rule of law ☐ rule ☐ trigger ☐
- 7 Legal personality and capacity ☐ rule ☐ trigger ☐ trap ☐
- 8 Alternative dispute resolution overview ☐ rule ☐ trigger ☐
- 9 Tribunals and specialist forums ☐ rule ☐ trigger ☐ trap ☐
- 10 Human rights in ordinary litigation ☐ rule ☐ trigger ☐
- 11 Retained EU law after Brexit ☐ rule ☐ trigger ☐ trap ☐
- 12 Remedies overview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 13 Limitation as a system issue ☐ rule ☐ trigger ☐ trap ☐
- 14 Professional language and legal method ☐ rule ☐ trigger ☐
- 15 Mixed issue spotting drill ☐ rule ☐ trigger ☐ trap ☐

마지막 질문: 문제에서 court, appeal, precedent, statutory interpretation, civil/criminal distinction이 보이면 먼저 관할과 법원을 정하고, 그 다음 적용 법규를 찾는다.

## 2. Legal Services and Professional Conduct Dashboard

Legal Services and Professional Conduct 의 쟁점 대시보드입니다. 이 장  
세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시  
정하는 것입니다.

핵심 쟁점

Client care

Confidentiality

Conflicts

Duties to court

Undertakings

Client money

공개 권위자료 앵커

SRA Principles (Regulation)

SRA Code of Conduct for Solicitors (Regulation)

SRA Accounts Rules (Regulation)

Conflict and confidentiality (Exam theme)

Misleading court/client/third party (Exam theme)

강사식 한 줄 전략

문제에서 압박, 누락, misleading statement, conflict, confidential, vulnerable client가 보이면 즉시 ethics flag를 세운다.

SQE1 Issue Atlas v0.1 | Legal Services and Professional Conduct



# FLK1

Legal Services and Professional Conduct Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

쟁점 핵심 법리 Trigger Trap

Client care The client must understand scope, costs, comp  
responsible for the matter. retainer, costs estimate, con  
Assuming technical legal accuracy cures poor client commu

Confidentiality Confidentiality starts with the client in  
authority, legal duty or a permitted exception. secret, r  
request Confusing confidentiality with privilege or assum  
enough.

Conflicts Check own-interest conflict and client conflict  
consider whether any exception genuinely applies. two cl  
personal interest Trying to solve conflict only with info  
do not permit it.

Duties to court A solicitor must not mislead the court an  
impressions within professional limits. mistake, false ev  
Putting client loyalty above the duty not to mislead.

Undertakings An undertaking is a professional promise tha  
according to its terms and monitored carefully. completio  
deadline Treating an undertaking as casual correspondence

Client money Client money must be identified, protected,  
when a proper rule permits withdrawal. mixed receipt, bi  
money to office account because the firm expects to earn

SQE1 Issue Atlas v0.1 | Legal Services and Professional C

# FLK 1

## Legal Services and Professional Conduct Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

retainer Client care The client must understand scope, costs and who is responsible for the matter. Assuming technical legal client communication.

costs estimate Client care The client must understand scope and who is responsible for the matter. Assuming technical legal client communication.

complaint Client care The client must understand scope, costs and who is responsible for the matter. Assuming technical legal client communication.

vulnerable client Client care The client must understand scope, route and who is responsible for the matter. Assuming technical poor client communication.

secret Confidentiality Confidentiality starts with the client disclosure needs authority, legal duty or a permitted exception confidentiality with privilege or assuming silence is always

former client Confidentiality Confidentiality starts with the client disclosure needs authority, legal duty or a permitted exception confidentiality with privilege or assuming silence is always

disclosure request Confidentiality Confidentiality starts with the information; disclosure needs authority, legal duty or a permitted exception Confusing confidentiality with privilege or assuming silence

two clients Conflicts Check own-interest conflict and client then consider whether any exception genuinely applies. Trust with informed consent when the rules do not permit it.

lender and borrower Conflicts Check own-interest conflict and acting, then consider whether any exception genuinely applies conflict only with informed consent when the rules do not permit

personal interest Conflicts Check own-interest conflict and acting, then consider whether any exception genuinely applies conflict only with informed consent when the rules do not permit

mistake Duties to court A solicitor must not mislead the court misleading impressions within professional limits. Putting duty not to mislead.

false evidence Duties to court A solicitor must not mislead the court

correct misleading impressions within professional limits  
above the duty not to mislead.

adverse authority Duties to court A solicitor must not mislead  
correct misleading impressions within professional limits  
above the duty not to mislead.

completion Undertakings An undertaking is a professional promise  
honoured according to its terms and monitored carefully. Treating  
casual correspondence.

redemption Undertakings An undertaking is a professional promise  
honoured according to its terms and monitored carefully. Treating  
casual correspondence.

promise Undertakings An undertaking is a professional promise  
according to its terms and monitored carefully. Treating  
correspondence.

deadline Undertakings An undertaking is a professional promise  
according to its terms and monitored carefully. Treating  
correspondence.

mixed receipt Client money Client money must be identified and  
moved only when a proper rule permits withdrawal. Moving money  
because the firm expects to earn it later.

bill Client money Client money must be identified, protected and  
only when a proper rule permits withdrawal. Moving money  
the firm expects to earn it later.

residual balance Client money Client money must be identified and  
and moved only when a proper rule permits withdrawal. Moving money  
because the firm expects to earn it later.

SQE1 Issue Atlas v0.1 | Legal Services and Professional Conduct

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Client care 대한변협 윤리감각은 도움이 되지만 답은 SRA Principles와 Code 기준으로 고른다. Assuming technical legal accuracy cures poor client

Confidentiality 대한변협 윤리감각은 도움이 되지만 답은 SRA Principles와 Code 기준으로 고른다. Confusing confidentiality with privilege or ass always enough.

Conflicts 대한변협 윤리감각은 도움이 되지만 답은 SRA Principles와 Code 기준으로 고른다. Trying to solve conflict only with informed consent permit it.

Duties to court 대한변협 윤리감각은 도움이 되지만 답은 SRA Principles와 Code 기준으로 고른다. Putting client loyalty above the duty not to m

Undertakings 대한변협 윤리감각은 도움이 되지만 답은 SRA Principles와 Code 기준으로 고른다. Treating an undertaking as casual correspondence.

Client money 대한변협 윤리감각은 도움이 되지만 답은 SRA Principles와 Code 기준으로 고른다. Moving money to office account because the firm exp

SQE1 Issue Atlas v0.1 | Legal Services and Professional Conduct Pitfalls

Legal Services and Professional Conduct Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Regulation SRA Principles integrity, independence, public  
<https://www.sra.org.uk/solicitors/standards-regulations/>

Regulation SRA Code of Conduct for Solicitors individual  
<https://www.sra.org.uk/solicitors/standards-regulations/>

Regulation SRA Accounts Rules client money handling  
<https://www.sra.org.uk/solicitors/standards-regulations/>

Exam theme Conflict and confidentiality recurring hidden  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel->

Exam theme Misleading court/client/third party personal c  
away <https://sqe.sra.org.uk/assessments/sqel-assessments/>

SQE1 Issue Atlas v0.1 | Legal Services and Professional C

# FLK 1

Legal Services and Professional Conduct Issue Cards 1 - 2

Client care

Rule: The client must understand scope, costs, complaints responsible for the matter.

Trigger: retainer, costs estimate, complaint, vulnerable

Trap: Assuming technical legal accuracy cures poor client

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Confidentiality

Rule: Confidentiality starts with the client information, authority, legal duty or a permitted exception.

Trigger: secret, former client, disclosure request

Trap: Confusing confidentiality with privilege or assuming

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Legal Services and Professional C

# FLK 1

Legal Services and Professional Conduct Issue Cards 3 - 4

## Conflicts

Rule: Check own-interest conflict and client conflict before whether any exception genuinely applies.

Trigger: two clients, lender and borrower, personal interest

Trap: Trying to solve conflict only with informed consent permit it.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

## Duties to court

Rule: A solicitor must not mislead the court and must comply within professional limits.

Trigger: mistake, false evidence, adverse authority

Trap: Putting client loyalty above the duty not to mislead

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Legal Services and Professional Conduct

# FLK 1

Legal Services and Professional Conduct Issue Cards 5 - 6

## Undertakings

Rule: An undertaking is a professional promise that must be monitored carefully.

Trigger: completion, redemption, promise, deadline

Trap: Treating an undertaking as casual correspondence.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

## Client money

Rule: Client money must be identified, protected, recorded and proper rule permits withdrawal.

Trigger: mixed receipt, bill, residual balance

Trap: Moving money to office account because the firm expects

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Legal Services and Professional Conduct



# FLK 1

Legal Services and Professional Conduct Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 SRA Principles as exam compass ☐ rule ☐ trigger ☐ trap
- 2 Integrity and independence ☐ rule ☐ trigger ☐ trap ☐ ethics
- 3 Client best interests and public interest ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 4 Confidentiality and disclosure ☐ rule ☐ trigger ☐ trap ☐ ethics
- 5 Conflict of interests ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 6 Duties to the court ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 7 Misleading communications ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 8 Client care and costs information ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 9 Complaints and supervision ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 10 Undertakings ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 11 Anti-money laundering awareness ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 12 Vulnerable clients ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 13 Equality, diversity and inclusion ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 14 Reporting misconduct ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 15 Ethics mixed MCQ method ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure

마지막 질문: 문제에서 압박, 누락, misleading statement, conflict, confidential client money, vulnerable client가 보이면 즉시 ethics flag를 세운다

SQE1 Issue Atlas v0.1 | Legal Services and Professional Conduct

# FLK1

## 3. Constitutional and Administrative Law and EU Law Dashboard

Constitutional and Administrative Law and EU Law 의 쟁점 대시보드  
목적은 모든 세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다.

핵심 쟁점

Parliamentary sovereignty

Judicial review gateway

Illegality

Procedural fairness

Proportionality and HRA

Remedies

공개 권위자료 앵커

Human Rights Act 1998 (Statute)

Senior Courts Act 1981 (Statute)

Council of Civil Service Unions v Minister for the Civil Service  
(Case)

Associated Provincial Picture Houses v Wednesbury Corporation

R v North and East Devon Health Authority, ex p Coughlan

강사식 한 줄 전략

public body, decision, consultation, legitimate expectation, fundamental  
rights가 보이면 public law issue map을 펼친다.

SQE1 Issue Atlas v0.1 | Constitutional and Administrative Law

# FLK1

Constitutional and Administrative Law and EU Law Final Review

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

쟁점 핵심 법리 Trigger Trap

Parliamentary sovereignty Courts interpret and apply legal limits usually arise through interpretation, rights and Act of Parliament, ouster, compatibility Answering with legal instead of legal mechanism.

Judicial review gateway Identify public body, public functions time and alternative remedy before grounds. public authority promptness, remedy Jumping to merits appeal when the question decision-making.

Illegality A decision-maker must understand the law, use within statutory purpose. wrong power, irrelevant factors every bad decision as irrationality.

Procedural fairness Fairness depends on context, statutory expectation and impact on the person affected. consultation Assuming a full oral hearing is always required.

Proportionality and HRA Rights analysis asks whether interference a legitimate aim and is proportionate. qualified right, proportionate intrusive Using Wednesbury language where the problem requires

Remedies JR remedies are discretionary and practical; quashing prohibiting, declaration and damages serve different functions declaration, damages Assuming success on a ground automatically commercial outcome.

SQE1 Issue Atlas v0.1 | Constitutional and Administrative Law grid

# FLK 1

Constitutional and Administrative Law and EU Law Trigger

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

Act of Parliament Parliamentary sovereignty Courts interpret constitutional limits usually arise through interpretative competence. Answering with broad political principle instead

ouster Parliamentary sovereignty Courts interpret and apply constitutional limits usually arise through interpretative competence. Answering with broad political principle instead

compatibility Parliamentary sovereignty Courts interpret constitutional limits usually arise through interpretative competence. Answering with broad political principle instead

public authority Judicial review gateway Identify public body, decision, standing, time and alternative remedy before grounds of appeal when the question is about lawfulness of decision-making.

permission Judicial review gateway Identify public body, standing, time and alternative remedy before grounds. Justification the question is about lawfulness of decision-making.

promptness Judicial review gateway Identify public body, standing, time and alternative remedy before grounds. Justification the question is about lawfulness of decision-making.

remedy Judicial review gateway Identify public body, public body, standing, time and alternative remedy before grounds. Justification the question is about lawfulness of decision-making.

wrong power Illegality A decision-maker must understand and exercise power and stay within statutory purpose. Treating every error as irrationality.

irrelevant factor Illegality A decision-maker must understand and exercise correct power and stay within statutory purpose. Treating every error as irrationality.

relevant factor Illegality A decision-maker must understand and exercise power and stay within statutory purpose. Treating every error as irrationality.

consultation Procedural fairness Fairness depends on context, legitimate expectation and impact on the person affected. A hearing is always required.

hearing Procedural fairness Fairness depends on context, legitimate expectation and impact on the person affected. A hearing is always required.

legitimate expectation and impact on the hearing is always required.

bias Procedural fairness Fairness depends on context, state of legitimate expectation and impact on the person affected. Assuming a hearing is always required.

reasons Procedural fairness Fairness depends on context, state of legitimate expectation and impact on the person affected. Assuming a hearing is always required.

qualified right Proportionality and HRA Rights analysis as lawful, pursues a legitimate aim and is proportionate. Use where the problem requires proportionality.

legitimate aim Proportionality and HRA Rights analysis as lawful, pursues a legitimate aim and is proportionate. Use where the problem requires proportionality.

less intrusive Proportionality and HRA Rights analysis as lawful, pursues a legitimate aim and is proportionate. Use where the problem requires proportionality.

quashing order Remedies JR remedies are discretionary and mandatory, prohibiting, declaration and damages serve different functions. Success on a ground automatically gives the desired commercial outcome.

declaration Remedies JR remedies are discretionary and mandatory, prohibiting, declaration and damages serve different functions. Success on a ground automatically gives the desired commercial outcome.

damages Remedies JR remedies are discretionary and practical. Prohibiting, declaration and damages serve different functions. Success on a ground automatically gives the desired commercial outcome.

SQE1 Issue Atlas v0.1 | Constitutional and Administrative Law map

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쟁점 한국변호사 주의점 SQE식 함정

Parliamentary sovereignty 한국의 행정소송과 비슷하게 느껴도 judicial review permission, grounds, remedies 구조는 별도로 익혀야 한다. Answering v political principle instead of legal mechanism.

Judicial review gateway 한국의 행정소송과 비슷하게 느껴도 judicial review permission, grounds, remedies 구조는 별도로 익혀야 한다. Jumping to when the question is about lawfulness of decision-making

Illegality 한국의 행정소송과 비슷하게 느껴도 judicial review의 permission, remedies 구조는 별도로 익혀야 한다. Treating every bad decision as

Procedural fairness 한국의 행정소송과 비슷하게 느껴도 judicial review의 permission, grounds, remedies 구조는 별도로 익혀야 한다. Assuming a full oral hearing required.

Proportionality and HRA 한국의 행정소송과 비슷하게 느껴도 judicial review의 permission, grounds, remedies 구조는 별도로 익혀야 한다. Using Wednesbury where the problem requires proportionality.

Remedies 한국의 행정소송과 비슷하게 느껴도 judicial review의 permission, grounds, remedies 구조는 별도로 익혀야 한다. Assuming success on a ground achieves the desired commercial outcome.

# FLK1

Constitutional and Administrative Law and EU Law Source A

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Statute Human Rights Act 1998 Convention rights in domestic law  
<https://www.legislation.gov.uk/>

Statute Senior Courts Act 1981 judicial review remedies  
<https://www.legislation.gov.uk/>

Case Council of Civil Service Unions v Minister for the Civil Service  
illegality, irrationality, procedural impropriety <https://www.bailii.org/>

Case Associated Provincial Picture Houses v Wednesbury Corporation  
irrationality threshold <https://www.bailii.org/>

Case R v North and East Devon Health Authority, ex p Cougle  
legitimate expectation <https://www.bailii.org/>

SQE1 Issue Atlas v0.1 | Constitutional and Administrative Law  
anchors

# FLK1

Constitutional and Administrative Law and EU Law Issue Cards

Parliamentary sovereignty

Rule: Courts interpret and apply legislation; constitutional rights through interpretation, rights and institutional competence

Trigger: Act of Parliament, ouster, compatibility

Trap: Answering with broad political principle instead of law

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Judicial review gateway

Rule: Identify public body, public function, decision, statutory alternative remedy before grounds.

Trigger: public authority, permission, promptness, remedy

Trap: Jumping to merits appeal when the question is about decision-making.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Constitutional and Administrative Law cards



# FLK1

Constitutional and Administrative Law and EU Law Issue Cards

## Illegality

Rule: A decision-maker must understand the law, use the law correctly and act within statutory purpose.

Trigger: wrong power, irrelevant factor, relevant factor

Trap: Treating every bad decision as irrationality.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

## Procedural fairness

Rule: Fairness depends on context, statutory scheme, legal rights and impact on the person affected.

Trigger: consultation, hearing, bias, reasons

Trap: Assuming a full oral hearing is always required.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Constitutional and Administrative Law cards

# FLK1

Constitutional and Administrative Law and EU Law Issue Cards  
Proportionality and HRA

Rule: Rights analysis asks whether interference is lawful and is proportionate.

Trigger: qualified right, legitimate aim, less intrusive

Trap: Using Wednesbury language where the problem requires

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Remedies

Rule: JR remedies are discretionary and practical; quashing declaration and damages serve different functions.

Trigger: quashing order, declaration, damages

Trap: Assuming success on a ground automatically gives the outcome.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Constitutional and Administrative cards

# FLK1

Constitutional and Administrative Law and EU Law Last-Day

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

1 Parliamentary sovereignty □ rule □ trigger □ trap □ ethics

2 Rule of law □ rule □ trigger □ trap □ ethics/procedure

3 Separation of powers □ rule □ trigger □ trap □ ethics/p

4 Royal prerogative □ rule □ trigger □ trap □ ethics/proc

5 Devolution □ rule □ trigger □ trap □ ethics/procedure

6 Human Rights Act framework □ rule □ trigger □ trap □ e

7 Public order and police powers □ rule □ trigger □ trap

8 Judicial review overview □ rule □ trigger □ trap □ ethi

9 Illegality as a ground □ rule □ trigger □ trap □ ethics

10 Irrationality and proportionality □ rule □ trigger □

11 Procedural impropriety □ rule □ trigger □ trap □ ethi

12 Legitimate expectation □ rule □ trigger □ trap □ ethi

13 Remedies in judicial review □ rule □ trigger □ trap □

14 Retained EU law basics □ rule □ trigger □ trap □ ethi

15 Public law mixed drill □ rule □ trigger □ trap □ ethi

마지막 질문: public body, decision, consultation, legitimate c  
proportionality, human rights가 보이면 public law issue map을

SQE1 Issue Atlas v0.1 | Constitutional and Administrative  
checklist

## 4. Contract Law Dashboard

Contract Law 의 쟁점 대시보드입니다. 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다.

핵심 쟁점

Formation

Terms

Exclusion clauses

Misrepresentation

Discharge

Damages

공개 권위자료 앵커

Consumer Rights Act 2015 (Statute)

Unfair Contract Terms Act 1977 (Statute)

Misrepresentation Act 1967 (Statute)

Contracts (Rights of Third Parties) Act 1999 (Statute)

Carlill v Carbolic Smoke Ball Co [1893] 1 QB 256 (Case)

Hadley v Baxendale (1854) 9 Ex 341 (Case)

강사식 한 줄 전략

문제를 보면 먼저 계약이 생겼는지, 다음으로 어떤 term인지, 그 다음 breach와 remedy를 차례로 본다.

# FLK1

## Contract Law Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

### 쟁점 핵심 법리 Trigger Trap

Formation Offer, acceptance, consideration, intention and before remedies matter. advert, quotation, email acceptance. Treating every negotiation statement as an offer.

Terms Classify express, implied, condition, warranty and deciding consequence of breach. written term, implied term every important term a condition.

Exclusion clauses Incorporation, construction and statute checked. small print, notice, consumer, negligence exclusion before asking whether it became part of the contract.

Misrepresentation A false statement inducing the contract damages depending on type and bars. pre-contract statement Confusing a broken promise with a misrepresentation.

Discharge Performance, breach, agreement and frustration or alter obligations. impossibility, delay, repudiation, frustration for a merely more expensive bargain.

Damages Expectation loss is limited by causation, remoteness lost profit, special knowledge, mitigation Awarding every loss without checking remoteness.

SQE1 Issue Atlas v0.1 | Contract Law | final grid

# FLK 1

## Contract Law Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

advert Formation Offer, acceptance, consideration, intention must be proved before remedies matter. Treating every negotiation

quotation Formation Offer, acceptance, consideration, intention must be proved before remedies matter. Treating every negotiation

email acceptance Formation Offer, acceptance, consideration, intention must be proved before remedies matter. Treating every negotiation as an offer.

subject to contract Formation Offer, acceptance, consideration, intention must be proved before remedies matter. Treating every statement as an offer.

written term Terms Classify express, implied, condition, intention must be proved before deciding consequence of breach. Calling every condition.

implied term Terms Classify express, implied, condition, intention must be proved before deciding consequence of breach. Calling every condition.

classification Terms Classify express, implied, condition, intention must be proved before deciding consequence of breach. Calling every condition.

small print Exclusion clauses Incorporation, construction and intention must all be checked. Applying the clause before asking whether it is part of the contract.

notice Exclusion clauses Incorporation, construction and intention must all be checked. Applying the clause before asking whether it is part of the contract.

consumer Exclusion clauses Incorporation, construction and intention must all be checked. Applying the clause before asking whether it is part of the contract.

negligence exclusion Exclusion clauses Incorporation, construction and intention must all be checked. Applying the clause before asking whether it is part of the contract.

pre-contract statement Misrepresentation A false statement made before the contract is made can give rescission and/or damages depending on type and bars rescission if the statement is a promise with a misrepresentation.

reliance Misrepresentation A false statement inducing the  
rescission and/or damages depending on type and bars. Con  
with a misrepresentation.

rescission Misrepresentation A false statement inducing  
rescission and/or damages depending on type and bars. Con  
with a misrepresentation.

impossibility Discharge Performance, breach, agreement and  
routes to end or alter obligations. Using frustration for  
bargain.

delay Discharge Performance, breach, agreement and frustra  
to end or alter obligations. Using frustration for a mere

repudiation Discharge Performance, breach, agreement and  
routes to end or alter obligations. Using frustration for  
bargain.

force majeure Discharge Performance, breach, agreement and  
routes to end or alter obligations. Using frustration for  
bargain.

lost profit Damages Expectation loss is limited by causat  
and proof. Awarding every foreseeable commercial loss with

special knowledge Damages Expectation loss is limited by  
mitigation and proof. Awarding every foreseeable commerc  
remoteness.

mitigation Damages Expectation loss is limited by causat  
and proof. Awarding every foreseeable commercial loss with

SQE1 Issue Atlas v0.1 | Contract Law | trigger map

## Contract Law Korean - Law Pitfalls

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

**Formation** 한국 민법의 법률행위 구조와 비슷한 부분은 있지만 consideration, privity, exemption clause 통제는 별도 암기가 필요하다. Treating every negotiation as an offer.

**Terms** 한국 민법의 법률행위 구조와 비슷한 부분은 있지만 consideration, privity, exemption clause 통제는 별도 암기가 필요하다. Calling every important condition.

**Exclusion clauses** 한국 민법의 법률행위 구조와 비슷한 부분은 있지만 consideration, privity, exemption clause 통제는 별도 암기가 필요하다. Applying the test asking whether it became part of the contract.

**Misrepresentation** 한국 민법의 법률행위 구조와 비슷한 부분은 있지만 consideration, privity, exemption clause 통제는 별도 암기가 필요하다. Confusing a bargain with a misrepresentation.

**Discharge** 한국 민법의 법률행위 구조와 비슷한 부분은 있지만 consideration, privity, exemption clause 통제는 별도 암기가 필요하다. Using frustration for an expensive bargain.

**Damages** 한국 민법의 법률행위 구조와 비슷한 부분은 있지만 consideration, privity, exemption clause 통제는 별도 암기가 필요하다. Awarding every foreseeable loss without checking remoteness.

SQE1 Issue Atlas v0.1 | Contract Law | Korean-law pitfalls



# FLK1

## Contract Law Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Statute Consumer Rights Act 2015 consumer terms and unfair  
<https://www.legislation.gov.uk/>

Statute Unfair Contract Terms Act 1977 exclusion and limitation  
<https://www.legislation.gov.uk/>

Statute Misrepresentation Act 1967 misrepresentation remedies  
<https://www.legislation.gov.uk/>

Statute Contracts (Rights of Third Parties) Act 1999 third party  
<https://www.legislation.gov.uk/>

Case Carlill v Carbolic Smoke Ball Co [1893] 1 QB 256 offer and  
unilateral contracts <https://www.bailii.org/>

Case Hadley v Baxendale (1854) 9 Ex 341 remoteness of consequences  
<https://www.bailii.org/>

SQE1 Issue Atlas v0.1 | Contract Law | source anchors

# FLK 1

## Contract Law Issue Cards 1 - 2

### Formation

Rule: Offer, acceptance, consideration, intention and certainty before remedies matter.

Trigger: advert, quotation, email acceptance, subject to

Trap: Treating every negotiation statement as an offer.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

### Terms

Rule: Classify express, implied, condition, warranty and deciding consequence of breach.

Trigger: written term, implied term, classification

Trap: Calling every important term a condition.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Contract Law | issue cards

# FLK 1

Contract Law Issue Cards 3 - 4

Exclusion clauses

Rule: Incorporation, construction and statutory control

Trigger: small print, notice, consumer, negligence exclus

Trap: Applying the clause before asking whether it became

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Misrepresentation

Rule: A false statement inducing the contract may give r  
depending on type and bars.

Trigger: pre-contract statement, reliance, rescission

Trap: Confusing a broken promise with a misrepresentation

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Contract Law | issue cards

# FLK1

## Contract Law Issue Cards 5 - 6

### Discharge

Rule: Performance, breach, agreement and frustration are alter obligations.

Trigger: impossibility, delay, repudiation, force majeure

Trap: Using frustration for a merely more expensive bargain

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

### Damages

Rule: Expectation loss is limited by causation, remoteness

Trigger: lost profit, special knowledge, mitigation

Trap: Awarding every foreseeable commercial loss without

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Contract Law | issue cards

# FLK 1

## Contract Law Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Offer and invitation to treat ☐ rule ☐ trigger ☐ trap ☐
- 2 Acceptance and communication ☐ rule ☐ trigger ☐ trap ☐
- 3 Consideration ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 4 Intention and certainty ☐ rule ☐ trigger ☐ trap ☐ ethics
- 5 Capacity ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 6 Privity and third-party rights ☐ rule ☐ trigger ☐ trap ☐
- 7 Express and implied terms ☐ rule ☐ trigger ☐ trap ☐ ethics
- 8 Conditions, warranties and innominate terms ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 9 Interpretation of terms ☐ rule ☐ trigger ☐ trap ☐ ethics
- 10 Exemption clauses and unfair terms ☐ rule ☐ trigger ☐ trap ☐
- 11 Misrepresentation ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 12 Mistake, duress and undue influence ☐ rule ☐ trigger ☐ trap ☐
- 13 Discharge and frustration ☐ rule ☐ trigger ☐ trap ☐ ethics
- 14 Damages and remoteness ☐ rule ☐ trigger ☐ trap ☐ ethics
- 15 Specific performance and injunctions ☐ rule ☐ trigger ☐ trap ☐

마지막 질문: 문제를 보면 먼저 계약이 생겼는지, 다음으로 어떤 term인지, 그 다음 breach와 remedy를 차례로 본다.

## 5 . Tort Dashboard

Tort 의 쟁점 대시보드입니다 . 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라 , 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다 .

핵심 쟁점

Negligence structure

Duty of care

Breach

Causation

Occupiers and products

Defences

공개 권위자료 앵커

Donoghue v Stevenson [1932] AC 562 (Case)

Caparo Industries v Dickman [1990] 2 AC 605 (Case)

Hedley Byrne v Heller [1964] AC 465 (Case)

Occupiers' Liability Act 1957 (Statute)

Occupiers' Liability Act 1984 (Statute)

Consumer Protection Act 1987 (Statute)

강사식 한 줄 전략

피해자 , 가해자 , duty , breach , causation , remoteness , defence를 배

SQE1 Issue Atlas v0.1 | Tort | dashboard

# FLK1

## Tort Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

### 쟁점 핵심 법리 Trigger Trap

Negligence structure Duty, breach, causation, remoteness be handled in order. careless act, injury, loss, claimant and assuming duty.

Duty of care Duty analysis is controlled by recognised categories especially for omissions and pure economic loss. omission economic loss Assuming moral blame equals legal duty.

Breach Breach asks whether the defendant fell below the standard in context. professional, child, emergency, risk magnitude. hindsight after damage occurred.

Causation Factual causation and legal causation are separate. material contribution may matter. but for, intervening act at factual causation and ignoring remoteness.

Occupiers and products Statutory regimes alter the route to duty, breach and damage. visitor, trespasser, defective product negligence without checking the statutory regime.

Defences Consent, contributory negligence, illegality and defeat the claim. warning, risky activity, claimant fault negligence as complete defence in every case.

SQE1 Issue Atlas v0.1 | Tort | final grid

# FLK 1

## Tort Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

careless act Negligence structure Duty, breach, causation and damage must be handled in order. Starting with loss and assuming

injury Negligence structure Duty, breach, causation, remoteness must be handled in order. Starting with loss and assuming

loss Negligence structure Duty, breach, causation, remoteness must be handled in order. Starting with loss and assuming

claimant conduct Negligence structure Duty, breach, causation and damage must be handled in order. Starting with loss and assuming

omission Duty of care Duty analysis is controlled by reasonableness policy limits, especially for omissions and pure economic loss equals legal duty.

public authority Duty of care Duty analysis is controlled by reasonableness and policy limits, especially for omissions and pure economic loss equals legal duty.

economic loss Duty of care Duty analysis is controlled by reasonableness policy limits, especially for omissions and pure economic loss equals legal duty.

professional Breach Breach asks whether the defendant fell below the standard in context. Judging breach with hindsight after damage occurs

child Breach Breach asks whether the defendant fell below the standard in context. Judging breach with hindsight after damage occurs

emergency Breach Breach asks whether the defendant fell below the standard in context. Judging breach with hindsight after damage occurs

risk magnitude Breach Breach asks whether the defendant fell below the standard in context. Judging breach with hindsight after damage occurs

but for Causation Factual causation and legal causation are required. Acts and material contribution may matter. Stopping at factual causation ignoring remoteness.

intervening act Causation Factual causation and legal causation are required. Intervening acts and material contribution may matter. Stopping at factual causation and ignoring remoteness.

multiple causes Causation Factual causation and legal causation are required.



intervening acts and material contribution  
and ignoring remoteness.

visitor Occupiers and products Statutory regimes alter the  
status, duty, breach and damage. Using ordinary negligence  
statutory regime.

trespasser Occupiers and products Statutory regimes alter the  
require status, duty, breach and damage. Using ordinary negligence  
the statutory regime.

defective product Occupiers and products Statutory regimes alter the  
require status, duty, breach and damage. Using ordinary negligence  
the statutory regime.

warning Defences Consent, contributory negligence, illegality  
reduce or defeat the claim. Treating contributory negligence  
every case.

risky activity Defences Consent, contributory negligence, illegality  
can reduce or defeat the claim. Treating contributory negligence  
in every case.

claimant fault Defences Consent, contributory negligence, illegality  
can reduce or defeat the claim. Treating contributory negligence  
in every case.

SQE1 Issue Atlas v0.1 | Tort | trigger map

## Tort Korean - Law Pitfalls

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Negligence structure 한국 불법행위와 비교할 수 있지만 duty of care와 breach 영국식 단계로 말해야 한다. Starting with loss and assuming duty.

Duty of care 한국 불법행위와 비교할 수 있지만 duty of care와 breach 분석은 영국식 단계로 말해야 한다. Assuming moral blame equals legal duty.

Breach 한국 불법행위와 비교할 수 있지만 duty of care와 breach 분석은 영국식 단계로 말해야 한다. Judging breach with hindsight after damage occurs.

Causation 한국 불법행위와 비교할 수 있지만 duty of care와 breach 분석은 영국식 단계로 말해야 한다. Stopping at factual causation and ignoring remoteness.

Occupiers and products 한국 불법행위와 비교할 수 있지만 duty of care와 breach 영국식 단계로 말해야 한다. Using ordinary negligence without checking for strict liability regime.

Defences 한국 불법행위와 비교할 수 있지만 duty of care와 breach 분석은 영국식 단계로 말해야 한다. Treating contributory negligence as complete defence.

# FLK1

## Tort Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Case Donoghue v Stevenson [1932] AC 562 neighbour principle  
<https://www.bailii.org/>

Case Caparo Industries v Dickman [1990] 2 AC 605 duty of care  
<https://www.bailii.org/>

Case Hedley Byrne v Heller [1964] AC 465 negligent misstatement  
responsibility <https://www.bailii.org/>

Statute Occupiers' Liability Act 1957 visitors <https://www.legislation.gov.uk/ukpga/1957/31/enacted>

Statute Occupiers' Liability Act 1984 non-visitors <https://www.legislation.gov.uk/ukpga/1984/28/enacted>

Statute Consumer Protection Act 1987 product liability  
[https://www.legislation.gov.uk/](https://www.legislation.gov.uk/ukpga/1987/41/enacted)

SQE1 Issue Atlas v0.1 | Tort | source anchors

# FLK 1

Tort Issue Cards 1 - 2

Negligence structure

Rule: Duty, breach, causation, remoteness, defences and order.

Trigger: careless act, injury, loss, claimant conduct

Trap: Starting with loss and assuming duty.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Duty of care

Rule: Duty analysis is controlled by recognised categories especially for omissions and pure economic loss.

Trigger: omission, public authority, economic loss

Trap: Assuming moral blame equals legal duty.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Tort | issue cards

# FLK 1

## Tort Issue Cards 3 - 4

### Breach

Rule: Breach asks whether the defendant fell below the re

Trigger: professional, child, emergency, risk magnitude

Trap: Judging breach with hindsight after damage occurred

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

### Causation

Rule: Factual causation and legal causation are separate. material contribution may matter.

Trigger: but for, intervening act, multiple causes

Trap: Stopping at factual causation and ignoring remoteness

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Tort | issue cards

# FLK 1

Tort Issue Cards 5 - 6

Occupiers and products

Rule: Statutory regimes alter the route but still require damage.

Trigger: visitor, trespasser, defective product

Trap: Using ordinary negligence without checking the status

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Defences

Rule: Consent, contributory negligence, illegality and loss of chance can defeat the claim.

Trigger: warning, risky activity, claimant fault

Trap: Treating contributory negligence as complete defence

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Tort | issue cards

# FLK 1

## Tort Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Negligence structure ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 2 Duty of care ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 3 Breach of duty ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 4 Causation in fact ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 5 Legal causation and remoteness ☐ rule ☐ trigger ☐ trap
- 6 Pure economic loss ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 7 Psychiatric harm ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 8 Occupiers' liability ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 9 Employers' liability ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 10 Vicarious liability ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 11 Product liability ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 12 Nuisance ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 13 Defamation overview ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 14 Defences and contributory negligence ☐ rule ☐ trigger
- 15 Tort damages drill ☐ rule ☐ trigger ☐ trap ☐ ethics/p

마지막 질문: 피해자, 가해자, duty, breach, causation, remoteness, de  
표로 세운다.

SQE1 Issue Atlas v0.1 | Tort | last-day checklist

# FLK 1

## 6 . D i s p u t e R e s o l u t i o n D a s h b o a r d

D i s p u t e R e s o l u t i o n 의 쟁점 대시보드입니다 . 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라 , 시험장에서 어떤 r u l e f a m i l y 를 먼저 꺼낼지 즉시 정하는 것입니다 .

핵심 쟁점

P r e - a c t i o n

J u r i s d i c t i o n a n d s e r v i c e

S t a t e m e n t s o f c a s e

I n t e r i m a p p l i c a t i o n s

D i s c l o s u r e a n d e v i d e n c e

C o s t s a n d s e t t l e m e n t

공개 권위자료 앵커

C i v i l P r o c e d u r e R u l e s ( R u l e s )

C P R P a r t 3 6 ( R u l e s )

C P R P a r t 2 4 ( R u l e s )

C P R P a r t 3 1 ( R u l e s )

C P R P a r t 3 5 ( R u l e s )

P r e - a c t i o n c o n d u c t ( T h e m e )

강사식 한 줄 전략

항상 ' 지금 절차가 어느 단계인가 ' 를 먼저 잡는다 . 그 다음 d e a d l i n e , d o c u m e n t , c o u r t p o w e r , c o s t r i s k 를 본다 .

S Q E 1 I s s u e A t l a s v 0 . 1 | D i s p u t e R e s o l u t i o n | d a s h b o a r d



# FLK 1

## Dispute Resolution Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

### 쟁점 핵심 법리 Trigger Trap

Pre-action Before issue, check limitation, protocol comp preservation, settlement and costs risk. letter before c Issuing first and fixing disclosure later.

Jurisdiction and service The court must have jurisdiction served properly within the rules. service address, out of Assuming email service is valid because it is convenient

Statements of case Plead material facts and remedy; evidence elsewhere. particulars, defence, reply, amendment Pleading the material facts.

Interim applications Choose the application that matches and evidence available. summary judgment, interim injunction summary judgment simply because the client is confident.

Disclosure and evidence Disclosure, witness evidence and different evidential functions and require court control statement, expert, privilege Confusing harmful documents

Costs and settlement Part 36 and costs consequences can o economics even where liability is disputed. offer, relevant judgment Assessing settlement without costs consequences

SQE1 Issue Atlas v0.1 | Dispute Resolution | final grid

# FLK 1

## Dispute Resolution Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

letter before claim Pre-action Before issue, check limitation evidence preservation, settlement and costs risk. Issuing disclosure later.

protocol Pre-action Before issue, check limitation, protocol preservation, settlement and costs risk. Issuing first and

limitation Pre-action Before issue, check limitation, protocol preservation, settlement and costs risk. Issuing first and

service address Jurisdiction and service The court must be served properly within the rules. Assuming because it is convenient.

out of jurisdiction Jurisdiction and service The court must be served properly within the rules. Assuming because it is convenient.

deadline Jurisdiction and service The court must have jurisdiction must be served properly within the rules. Assuming email is convenient.

particulars Statements of case Plead material facts and remedy argument belong elsewhere. Pleading every document instead of the

defence Statements of case Plead material facts and remedy belong elsewhere. Pleading every document instead of the

reply Statements of case Plead material facts and remedy belong elsewhere. Pleading every document instead of the

amendment Statements of case Plead material facts and remedy belong elsewhere. Pleading every document instead of the

summary judgment Interim applications Choose the application procedural objective and evidence available. Choosing summary because the client is confident.

interim injunction Interim applications Choose the application procedural objective and evidence available. Choosing summary because the client is confident.

strike out Interim applications Choose the application procedural objective and evidence available. Choosing summary judgment because client is confident.

document Disclosure and evidence Disclosure, witness evidence serve different evidential functions and require court costs documents with irrelevant documents .

witness statement Disclosure and evidence Disclosure, witness evidence serve different evidential functions and require court costs harmful documents with irrelevant documents .

expert Disclosure and evidence Disclosure, witness evidence serve different evidential functions and require court costs documents with irrelevant documents .

privilege Disclosure and evidence Disclosure, witness evidence serve different evidential functions and require court costs documents with irrelevant documents .

offer Costs and settlement Part 36 and costs consequences litigation economics even where liability is disputed. Assessing settlement consequences .

relevant period Costs and settlement Part 36 and costs consequences litigation economics even where liability is disputed. Assessing costs consequences .

acceptance Costs and settlement Part 36 and costs consequences litigation economics even where liability is disputed. Assessing costs consequences .

judgment Costs and settlement Part 36 and costs consequences litigation economics even where liability is disputed. Assessing costs consequences .

SQE1 Issue Atlas v0.1 | Dispute Resolution | trigger map

## Dispute Resolution Korean - Law Pitfalls

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Pre-action 한국 민사소송 경험은 도움이 되지만 CPR 용어와 costs consequences 익혀야 한다. Issuing first and fixing disclosure later.

Jurisdiction and service 한국 민사소송 경험은 도움이 되지만 CPR 용어와 costs consequences는 별도로 익혀야 한다. Assuming email service is valid convenient.

Statements of case 한국 민사소송 경험은 도움이 되지만 CPR 용어와 costs consequences는 별도로 익혀야 한다. Pleading every document instead facts.

Interim applications 한국 민사소송 경험은 도움이 되지만 CPR 용어와 costs consequences는 별도로 익혀야 한다. Choosing summary judgment simply client is confident.

Disclosure and evidence 한국 민사소송 경험은 도움이 되지만 CPR 용어와 costs consequences는 별도로 익혀야 한다. Confusing harmful documents with documents.

Costs and settlement 한국 민사소송 경험은 도움이 되지만 CPR 용어와 costs consequences는 별도로 익혀야 한다. Assessing settlement without costs.

SQE1 Issue Atlas v0.1 | Dispute Resolution | Korean-law pit

## Dispute Resolution Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Rules Civil Procedure Rules procedural backbone  
<https://www.justice.gov.uk/courts/procedure-rules/civil>

Rules CPR Part 36 settlement offers and costs consequences  
<https://www.justice.gov.uk/courts/procedure-rules/civil/part36>

Rules CPR Part 24 summary judgment  
<https://www.justice.gov.uk/courts/procedure-rules/civil/part24>

Rules CPR Part 31 disclosure <https://www.justice.gov.uk/courts/procedure-rules/civil/part31>

Rules CPR Part 35 experts <https://www.justice.gov.uk/courts/procedure-rules/civil/part35>

Theme Pre-action conduct costs risk before issue  
<https://sqe.sra.org.uk/assessments/sqe1-assessments/sqe1-theme-pre-action-conduct-costs-risk-before-issue>

SQE1 Issue Atlas v0.1 | Dispute Resolution | source anchors

# FLK 1

## Dispute Resolution Issue Cards 1 - 2

### Pre - action

Rule: Before issue, check limitation, protocol compliance, settlement and costs risk.

Trigger: letter before claim, protocol, limitation

Trap: Issuing first and fixing disclosure later.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

### Jurisdiction and service

Rule: The court must have jurisdiction and the defendant within the rules.

Trigger: service address, out of jurisdiction, deadline

Trap: Assuming email service is valid because it is convenient

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Dispute Resolution | issue cards

# FLK 1

Dispute Resolution Issue Cards 3 - 4

Statements of case

Rule: Plead material facts and remedy; evidence and argument

Trigger: particulars, defence, reply, amendment

Trap: Pleading every document instead of the material facts

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Interim applications

Rule: Choose the application that matches the procedural context available.

Trigger: summary judgment, interim injunction, strike out

Trap: Choosing summary judgment simply because the client wants it

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Dispute Resolution | issue cards

# FLK 1

Dispute Resolution Issue Cards 5 - 6

Disclosure and evidence

Rule: Disclosure, witness evidence and expert evidence serve different functions and require court control.

Trigger: document, witness statement, expert, privilege

Trap: Confusing harmful documents with irrelevant documents

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Costs and settlement

Rule: Part 36 and costs consequences can change the litigation liability is disputed.

Trigger: offer, relevant period, acceptance, judgment

Trap: Assessing settlement without costs consequences.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Dispute Resolution | issue cards



## Dispute Resolution Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Pre-action conduct ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 2 Limitation and issuing claims ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 3 Jurisdiction and service ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 4 Statements of case ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 5 Default judgment ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 6 Admissions and settlement ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 7 Case management ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 8 Disclosure ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 9 Witness evidence ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 10 Expert evidence ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 11 Interim applications ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 12 Summary judgment ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 13 Trial and judgment ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 14 Costs principles ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 15 Enforcement and appeals ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure

마지막 질문: 항상 '지금 절차가 어느 단계인가'를 먼저 잡는다. 그 다음 deadline, document, court power, cost risk를 본다.

## 7. Business Law and Practice Dashboard

Business Law and Practice 의 쟁점 대시보드입니다. 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다.

핵심 쟁점

Business media

Authority

Directors' duties

Shareholders

Finance and security

Insolvency risk

공개 권위자료 앵커

Companies Act 2006 (Statute)

Insolvency Act 1986 (Statute)

Corporation tax, VAT, income tax, CGT (Tax)

Salomon v A Salomon & Co Ltd [1897] AC 22 (Case)

Authority and filings (Theme)

강사식 한 줄 전략

business medium, authority, decision-maker, filing, tax code  
점검한다.

SQE1 Issue Atlas v0.1 | Business Law and Practice | dashboard

# FLK 1

## Business Law and Practice Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

### 쟁점 핵심 법리 Trigger Trap

Business media Entity choice affects liability, tax, management  
sole trader, partnership, LLP, company Choosing company or  
professional.

Authority A person binds a business through actual, apparent  
depending on status and facts. director, agent, partner, partner,  
title always proves authority.

Directors' duties Directors owe statutory duties to the company  
conflicts, benefits and proper purpose. conflict, loan, loan,  
Treating shareholder approval as automatic cure.

Shareholders Shareholder rights depend on articles, statutory  
resolutions. ordinary resolution, special resolution, articles of  
constitution and voting threshold.

Finance and security Debt, equity and security have different  
and priority consequences. charge, debenture, Companies Act 2006  
registration of security.

Insolvency risk When insolvency threatens, duties and trading  
creditor protection. wrongful trading, preference, undervalue  
shareholder-focused decision-making.

SQE1 Issue Atlas v0.1 | Business Law and Practice | final

# FLK 1

## Business Law and Practice Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

sole trader Business media Entity choice affects liability and exit. Choosing company only because it sounds professional

partnership Business media Entity choice affects liability and exit. Choosing company only because it sounds professional

LLP Business media Entity choice affects liability, tax, exit. Choosing company only because it sounds professional

company Business media Entity choice affects liability, exit. Choosing company only because it sounds professional

director Authority A person binds a business through actual authority depending on status and facts. Assuming job title

agent Authority A person binds a business through actual authority depending on status and facts. Assuming job title

partner Authority A person binds a business through actual authority depending on status and facts. Assuming job title

board approval Authority A person binds a business through statutory authority depending on status and facts. Assuming authority.

conflict Directors' duties Directors owe statutory duties to manage conflicts, benefits and proper purpose. Treating shareholders automatic cure.

loan Directors' duties Directors owe statutory duties to manage conflicts, benefits and proper purpose. Treating shareholders automatic cure.

opportunity Directors' duties Directors owe statutory duties to manage conflicts, benefits and proper purpose. Treating shareholders automatic cure.

board decision Directors' duties Directors owe statutory duties to manage conflicts, benefits and proper purpose. Treating shareholders automatic cure.

ordinary resolution Shareholders Shareholder rights depend on class rights and resolutions. Ignoring the constitution and special resolution

special resolution Shareholders Shareholder rights depend on class rights and resolutions. Ignoring the constitution and ordinary resolution

class rights and resolutions. Ignoring the articles Shareholders Shareholder rights depend on articles and resolutions. Ignoring the constitution and voting the charge Finance and security Debt, equity and security have registration and priority consequences. Forgetting registration debenture Finance and security Debt, equity and security registration and priority consequences. Forgetting registration Companies House Finance and security Debt, equity and security approval, registration and priority consequences. Forgetting security. lender Finance and security Debt, equity and security have registration and priority consequences. Forgetting registration wrongful trading Insolvency risk When insolvency threatens risk shift toward creditor protection. Continuing normal decision-making. preference Insolvency risk When insolvency threatens, due shift toward creditor protection. Continuing normal shareholder decision-making. undervalue Insolvency risk When insolvency threatens, due shift toward creditor protection. Continuing normal shareholder decision-making.

SQE1 Issue Atlas v0.1 | Business Law and Practice | triggered

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Business media 한국 상법과 구조가 유사해 보이지만 Companies Act 용어, directors' duties, shareholder remedies는 영국식으로 정리해야 한다. Choosing company name because it sounds professional.

Authority 한국 상법과 구조가 유사해 보이지만 Companies Act 용어, directors' duties, shareholder remedies는 영국식으로 정리해야 한다. Assuming job title as authority.

Directors' duties 한국 상법과 구조가 유사해 보이지만 Companies Act 용어, directors' duties, shareholder remedies는 영국식으로 정리해야 한다. Treating shareholder approval as automatic cure.

Shareholders 한국 상법과 구조가 유사해 보이지만 Companies Act 용어, directors' duties, shareholder remedies는 영국식으로 정리해야 한다. Ignoring the and voting threshold.

Finance and security 한국 상법과 구조가 유사해 보이지만 Companies Act 용어, directors' duties, shareholder remedies는 영국식으로 정리해야 한다. No registration of security.

Insolvency risk 한국 상법과 구조가 유사해 보이지만 Companies Act 용어, directors' duties, shareholder remedies는 영국식으로 정리해야 한다. Continuing in shareholder-focused decision-making.

# FLK1

## Business Law and Practice Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Statute Companies Act 2006 company constitution, directors  
<https://www.legislation.gov.uk/>

Statute Insolvency Act 1986 insolvency and directors' ris  
<https://www.legislation.gov.uk/>

Tax Corporation tax, VAT, income tax, CGT SQE1 tax only  
<https://www.legislation.gov.uk/>

Case Salomon v A Salomon & Co Ltd [1897] AC 22 separate  
<https://www.bailii.org/>

Theme Authority and filings who can bind the business and  
<https://sqa.sra.org.uk/assessments/sqe1-assessments/sqe1->

SQE1 Issue Atlas v0.1 | Business Law and Practice | source

# FLK 1

Business Law and Practice Issue Cards 1 - 2

Business media

Rule: Entity choice affects liability, tax, management, 1

Trigger: sole trader, partnership, LLP, company

Trap: Choosing company only because it sounds professional

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Authority

Rule: A person binds a business through actual, apparent  
depending on status and facts.

Trigger: director, agent, partner, board approval

Trap: Assuming job title always proves authority.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Business Law and Practice | issue



# FLK 1

## Business Law and Practice Issue Cards 3 - 4

### Directors' duties

Rule: Directors owe statutory duties to the company and must act in the best interests of the company and for proper purpose.

Trigger: conflict, loan, opportunity, board decision

Trap: Treating shareholder approval as automatic cure.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

### Shareholders

Rule: Shareholder rights depend on articles, statute, class rights.

Trigger: ordinary resolution, special resolution, articles.

Trap: Ignoring the constitution and voting threshold.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Business Law and Practice | issue cards

# FLK 1

Business Law and Practice Issue Cards 5 - 6

Finance and security

Rule: Debt, equity and security have different approval, consequences.

Trigger: charge, debenture, Companies House, lender

Trap: Forgetting registration of security.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Insolvency risk

Rule: When insolvency threatens, duties and transaction protection.

Trigger: wrongful trading, preference, undervalue

Trap: Continuing normal shareholder-focused decision-making

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Business Law and Practice | issue

# FLK 1

## Business Law and Practice Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Business media choice ☐ rule ☐ trigger ☐ trap ☐ ethics
- 2 Sole trader and partnership ☐ rule ☐ trigger ☐ trap ☐ ethics
- 3 LLP and company basics ☐ rule ☐ trigger ☐ trap ☐ ethics
- 4 Company incorporation ☐ rule ☐ trigger ☐ trap ☐ ethics
- 5 Separate legal personality ☐ rule ☐ trigger ☐ trap ☐ ethics
- 6 Articles and constitution ☐ rule ☐ trigger ☐ trap ☐ ethics
- 7 Directors' powers and duties ☐ rule ☐ trigger ☐ trap ☐ ethics
- 8 Shareholder decision-making ☐ rule ☐ trigger ☐ trap ☐ ethics
- 9 Company meetings and resolutions ☐ rule ☐ trigger ☐ trap ☐ ethics
- 10 Share capital ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 11 Debt finance and security ☐ rule ☐ trigger ☐ trap ☐ ethics
- 12 Business taxation overview ☐ rule ☐ trigger ☐ trap ☐ ethics
- 13 VAT and trading profits ☐ rule ☐ trigger ☐ trap ☐ ethics
- 14 Insolvency overview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 15 Business practice mixed drill ☐ rule ☐ trigger ☐ trap ☐ ethics

마지막 질문: business medium, authority, decision-maker, filing 한 번에 점검한다.

## FLK 2

### 8 . Land Law Dashboard

Land Law 의 쟁점 대시보드입니다 . 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라 , 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다 .

핵심 쟁점

Estates and interests

Registered land

Co - ownership

Leases

Easements

Mortgages and priority

공개 권위자료 앵커

Law of Property Act 1925 ( Statute )

Land Registration Act 2002 ( Statute )

Trusts of Land and Appointment of Trustees Act 1996 ( Statute )

Street v Mountford [ 1985 ] AC 809 ( Case )

Williams & Glyn's Bank v Boland [ 1981 ] AC 487 ( Case )

강사식 한 줄 전략

legal / equitable , registered / unregistered , binding / not binding  
보인다 .

SQE1 Issue Atlas v0.1 | Land Law | dashboard

# FLK 2

## Land Law Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

### 쟁점 핵심 법리 Trigger Trap

Estates and interests Identify legal/equitable and registered priority. freehold, lease, easement, covenant Answering the right.

Registered land Registration determines title and priority overriding interests. registered title, notice, restriction Assuming an unregistered equitable right is worthless.

Co-ownership Legal title and beneficial ownership may differ principles matter. joint tenants, tenants in common, severance survivorship with beneficial shares.

Leases Exclusive possession, term and rent/context distinction occupier, term, exclusive possession Relying on label choice

Easements An easement needs dominant and servient land, and owners and capable subject matter. right of way, drainage convenience as an easement.

Mortgages and priority Security rights depend on creation rules. charge, lender, priority, overreaching Ignoring oversteps.

SQE1 Issue Atlas v0.1 | Land Law | final grid

## FLK 2

### Land Law Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

freehold Estates and interests Identify legal/equitable and lease before priority. Answering priority without classifying

lease Estates and interests Identify legal/equitable and lease before priority. Answering priority without classifying

easement Estates and interests Identify legal/equitable and lease before priority. Answering priority without classifying

covenant Estates and interests Identify legal/equitable and lease before priority. Answering priority without classifying

registered title Registered land Registration determines title subject to protected and overriding interests. Assuming an unregistered right is worthless.

notice Registered land Registration determines title and is subject to protected and overriding interests. Assuming an unregistered right is worthless.

restriction Registered land Registration determines title and is subject to protected and overriding interests. Assuming an unregistered right is worthless.

actual occupation Registered land Registration determines title and is subject to protected and overriding interests. Assuming an unregistered right is worthless.

joint tenants Co-ownership Legal title and beneficial ownership severedance and trust principles matter. Confusing survivorship with shares.

tenants in common Co-ownership Legal title and beneficial ownership severedance and trust principles matter. Confusing survivorship with shares.

severance Co-ownership Legal title and beneficial ownership severedance and trust principles matter. Confusing survivorship with shares.

occupier Leases Exclusive possession, term and rent/context of licence. Relying on label chosen by parties.

term Leases Exclusive possession, term and rent/context of licence. Relying on label chosen by parties.

exclusive possession Leases Exclusive possession lease from licence. Relying on label chosen by parties.

right of way Easements An easement needs dominant and servient different owners and capable subject matter. Treating even easement.

drainage Easements An easement needs dominant and servient different owners and capable subject matter. Treating even easement.

parking Easements An easement needs dominant and servient different owners and capable subject matter. Treating even easement.

charge Mortgages and priority Security rights depend on priority rules. Ignoring overreaching and registration s

lender Mortgages and priority Security rights depend on priority rules. Ignoring overreaching and registration s

priority Mortgages and priority Security rights depend on priority rules. Ignoring overreaching and registration s

overreaching Mortgages and priority Security rights depend on priority rules. Ignoring overreaching and registration

SQE1 Issue Atlas v0.1 | Land Law | trigger map

## FLK 2

### Land Law Korean - Law Pitfalls

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Estates and interests 한국 물권법과 닮았지만 registered land 체계와 equity interests는 따로 익혀야 한다. Answering priority without classifying

Registered land 한국 물권법과 닮았지만 registered land 체계와 equity interests는 따로 익혀야 한다. Assuming an unregistered equitable right is wrong

Co-ownership 한국 물권법과 닮았지만 registered land 체계와 equity interests는 따로 익혀야 한다. Confusing survivorship with beneficial shares.

Leases 한국 물권법과 닮았지만 registered land 체계와 equity interests는 따로 익혀야 한다. Relying on label chosen by parties.

Easements 한국 물권법과 닮았지만 registered land 체계와 equity interests는 따로 익혀야 한다. Treating every convenience as an easement.

Mortgages and priority 한국 물권법과 닮았지만 registered land 체계와 equity interests는 따로 익혀야 한다. Ignoring overreaching and registration

SQE1 Issue Atlas v0.1 | Land Law | Korean-law pitfalls



## FLK2

### Land Law Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Statute Law of Property Act 1925 estates, deeds, leases,  
<https://www.legislation.gov.uk/>

Statute Land Registration Act 2002 registered land and pr  
<https://www.legislation.gov.uk/>

Statute Trusts of Land and Appointment of Trustees Act 19  
of land <https://www.legislation.gov.uk/>

Case Street v Mountford [1985] AC 809 lease/licence dist  
<https://www.bailii.org/>

Case Williams & Glyn's Bank v Boland [1981] AC 487 actual  
interests <https://www.bailii.org/>

SQE1 Issue Atlas v0.1 | Land Law | source anchors

## FLK 2

Land Law Issue Cards 1 - 2

Estates and interests

Rule: Identify legal/equitable and registered/unregistered

Trigger: freehold, lease, easement, covenant

Trap: Answering priority without classifying the right.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Registered land

Rule: Registration determines title and priority, subject to overriding interests.

Trigger: registered title, notice, restriction, actual occupation

Trap: Assuming an unregistered equitable right is worthless

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Land Law | issue cards

## FLK 2

### Land Law Issue Cards 3 - 4

#### Co - ownership

Rule: Legal title and beneficial ownership may differ; s  
principles matter.

Trigger: joint tenants, tenants in common, severance

Trap: Confusing survivorship with beneficial shares.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

#### Leases

Rule: Exclusive possession, term and rent/context disting

Trigger: occupier, term, exclusive possession

Trap: Relying on label chosen by parties.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Land Law | issue cards

## FLK 2

### Land Law Issue Cards 5 - 6

#### Easements

Rule: An easement needs dominant and servient land, accession and capable subject matter.

Trigger: right of way, drainage, parking

Trap: Treating every convenience as an easement.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

#### Mortgages and priority

Rule: Security rights depend on creation, registration and

Trigger: charge, lender, priority, overreaching

Trap: Ignoring overreaching and registration steps.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Land Law | issue cards

## FLK 2

### Land Law Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Estates in land ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 2 Legal and equitable interests ☐ rule ☐ trigger ☐ trap ☐
- 3 Registered land system ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 4 Unregistered land overview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 5 Overriding interests ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 6 Co-ownership ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 7 Trusts of land ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 8 Leases and licences ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 9 Leasehold covenants ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 10 Easements ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 11 Freehold covenants ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 12 Mortgages ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 13 Adverse possession ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 14 Priority disputes ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 15 Land law mixed drill ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure

마지막 질문: legal/equitable, registered/unregistered, binding/overriding  
나누면 답이 보인다.

SQE1 Issue Atlas v0.1 | Land Law | last-day checklist

## 9. Property Practice Dashboard

Property Practice 의 쟁점 대시보드입니다. 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다.

핵심 쟁점

Instructions and client care

Investigation of title

Exchange

Completion

Post-completion

Leasehold

공개 권위자료 앵커

Land Registration Act 2002 (Statute)

Stamp Duty Land Tax (Tax)

Undertakings (Professional conduct)

Exchange and completion (Theme)

Acting for lender and borrower (Theme)

강사식 한 줄 전략

client objective, stage of transaction, search, finance, post-completion 순서로 정리한다.

SQE1 Issue Atlas v0.1 | Property Practice | dashboard

## FLK 2

### Property Practice Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

#### 쟁점 핵심 법리 Trigger Trap

Instructions and client care Check client identity, object conflicts and lender instructions at the start. buyer, seller Starting searches before confirming who the client is.

Investigation of title Review title, replies, searches and defects before exchange. title register, local search, enquiries results as mere paperwork.

Exchange Exchange creates a binding contract; deposit, conditions must be settled. contract race, deposit, completion party can withdraw after exchange without consequence.

Completion Completion mechanics depend on money, undertaking of documents. completion statement, mortgage, undertaking without control over performance.

Post-completion SDLT and registration deadlines protect completion SDLT, AP1, priority period Thinking the matter ends when

Leasehold Leasehold transactions require additional review service charges and lender requirements. assignment, land charge Reviewing leasehold as if it were freehold.

SQE1 Issue Atlas v0.1 | Property Practice | final grid

## FLK 2

### Property Practice Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

buyer Instructions and client care Check client identity capacity, conflicts and lender instructions at the start confirming who the client is.

seller Instructions and client care Check client identity capacity, conflicts and lender instructions at the start confirming who the client is.

lender Instructions and client care Check client identity capacity, conflicts and lender instructions at the start confirming who the client is.

joint clients Instructions and client care Check client funding, capacity, conflicts and lender instructions at before confirming who the client is.

title register Investigation of title Review title, replies to identify defects before exchange. Treating search results

local search Investigation of title Review title, replies identify defects before exchange. Treating search results

enquiries Investigation of title Review title, replies, identify defects before exchange. Treating search results

contract race Exchange Exchange creates a binding contract and conditions must be settled. Assuming either party can win without consequence.

deposit Exchange Exchange creates a binding contract; deposit conditions must be settled. Assuming either party can win without consequence.

completion date Exchange Exchange creates a binding contract; date and conditions must be settled. Assuming either party can win exchange without consequence.

completion statement Completion Completion mechanics depend on execution and release of documents. Giving an undertaking without performance.

mortgage Completion Completion mechanics depend on money, completion and release of documents. Giving an undertaking without completion

undertaking Completion Completion mechanics depend on money, completion



and release of documents . Giving an und

SDLT Post-completion SDLT and registration deadlines pro  
position. Thinking the matter ends when keys are released

AP1 Post-completion SDLT and registration deadlines prote  
position. Thinking the matter ends when keys are released

priority period Post-completion SDLT and registration dea  
lender position. Thinking the matter ends when keys are r

assignment Leasehold Leasehold transactions require addi  
terms, consents, service charges and lender requirements  
it were freehold.

landlord consent Leasehold Leasehold transactions require  
terms, consents, service charges and lender requirements  
it were freehold.

service charge Leasehold Leasehold transactions require a  
terms, consents, service charges and lender requirements  
it were freehold.

SQE1 Issue Atlas v0.1 | Property Practice | trigger map

### Property Practice Korean - Law Pitfalls

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Instructions and client care 한국 부동산등기 실무와 비슷하다고 느껴도 exchange, completion, undertakings, requisitions 구조가 다르다. Starting confirming who the client is.

Investigation of title 한국 부동산등기 실무와 비슷하다고 느껴도 exchange, completion, undertakings, requisitions 구조가 다르다. Treating mere paperwork.

Exchange 한국 부동산등기 실무와 비슷하다고 느껴도 exchange, completion, undertakings, requisitions 구조가 다르다. Assuming either party exchange without consequence.

Completion 한국 부동산등기 실무와 비슷하다고 느껴도 exchange, completion, undertakings, requisitions 구조가 다르다. Giving an undertaking performance.

Post-completion 한국 부동산등기 실무와 비슷하다고 느껴도 exchange, completion, undertakings, requisitions 구조가 다르다. Thinking the matter released.

Leasehold 한국 부동산등기 실무와 비슷하다고 느껴도 exchange, completion, undertakings, requisitions 구조가 다르다. Reviewing leasehold as freehold.

SQE1 Issue Atlas v0.1 | Property Practice | Korean-law pit

## FLK2

### Property Practice Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Statute Land Registration Act 2002 registration and prior  
<https://www.legislation.gov.uk/>

Tax Stamp Duty Land Tax post-completion tax step <https://www.legislation.gov.uk/>

Professional conduct Undertakings completion mechanics and  
<https://www.sra.org.uk/solicitors/standards-regulations/>

Theme Exchange and completion binding contract and transfer  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel1>

Theme Acting for lender and borrower conflict and report  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel1>

SQE1 Issue Atlas v0.1 | Property Practice | source anchors

## FLK 2

### Property Practice Issue Cards 1 - 2

#### Instructions and client care

Rule: Check client identity, objectives, funding, capacity and instructions at the start.

Trigger: buyer, seller, lender, joint clients

Trap: Starting searches before confirming who the client is

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

#### Investigation of title

Rule: Review title, replies, searches and enquiries to identify the correct exchange.

Trigger: title register, local search, enquiries

Trap: Treating search results as mere paperwork.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Property Practice | issue cards

## FLK 2

### Property Practice Issue Cards 3 - 4

#### Exchange

Rule: Exchange creates a binding contract; deposit, completion must be settled.

Trigger: contract race, deposit, completion date

Trap: Assuming either party can withdraw after exchange v

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

#### Completion

Rule: Completion mechanics depend on money, undertakings, documents.

Trigger: completion statement, mortgage, undertaking

Trap: Giving an undertaking without control over performance

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Property Practice | issue cards

## FLK 2

Property Practice Issue Cards 5 - 6

Post-completion

Rule: SDLT and registration deadlines protect client and

Trigger: SDLT, AP1, priority period

Trap: Thinking the matter ends when keys are released.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Leasehold

Rule: Leasehold transactions require additional review of service charges and lender requirements.

Trigger: assignment, landlord consent, service charge

Trap: Reviewing leasehold as if it were freehold.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Property Practice | issue cards

## FLK 2

### Property Practice Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Taking instructions in conveyancing ☐ rule ☐ trigger ☐
- 2 Pre-contract searches ☐ rule ☐ trigger ☐ trap ☐ ethics,
- 3 Deducing and investigating title ☐ rule ☐ trigger ☐ tra
- 4 Contract package ☐ rule ☐ trigger ☐ trap ☐ ethics/proced
- 5 Exchange of contracts ☐ rule ☐ trigger ☐ trap ☐ ethics,
- 6 Deposit and completion date ☐ rule ☐ trigger ☐ trap ☐ e
- 7 Mortgage finance ☐ rule ☐ trigger ☐ trap ☐ ethics/proced
- 8 Report on title ☐ rule ☐ trigger ☐ trap ☐ ethics/proced
- 9 Pre-completion steps ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 10 Completion mechanics ☐ rule ☐ trigger ☐ trap ☐ ethics,
- 11 Post-completion registration ☐ rule ☐ trigger ☐ trap ☐
- 12 SDLT overview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedu
- 13 Leasehold transactions ☐ rule ☐ trigger ☐ trap ☐ ethio
- 14 Acting for lender and buyer ☐ rule ☐ trigger ☐ trap ☐
- 15 Property practice mixed drill ☐ rule ☐ trigger ☐ trap

마지막 질문: client objective, stage of transaction, search, completion, post-completion 순서로 정리한다.

SQE1 Issue Atlas v0.1 | Property Practice | last-day che

10. Wills and the Administration of Estates Dashboard

Wills and the Administration of Estates 의 쟁점 대시보드입니다. 이 장  
세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시  
정하는 것입니다.

핵심 쟁점

Will validity

Revocation

Intestacy

Personal representatives

Family provision

IHT

공개 권위자료 앵커

Wills Act 1837 (Statute)

Administration of Estates Act 1925 (Statute)

Inheritance (Provision for Family and Dependants) Act 1975 (Statute)

Inheritance Tax Act 1984 (Statute)

Banks v Goodfellow (1870) LR 5 QB 549 (Case)

강사식 한 줄 전략

will valid? revoked? beneficiary alive? estate solvent? personal  
representative power? 순서로 간다.

SQE1 Issue Atlas v0.1 | Wills and the Administration of Estates



## FLK 2

Wills and the Administration of Estates Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

쟁점 핵심 법리 Trigger Trap

Will validity Capacity, intention, knowledge and approval  
be checked separately. signature, witnesses, capacity, su  
Assuming a signed document is always a valid will.

Revocation Marriage, later will, destruction and express  
estate plan. marriage, codicil, later will Using an old v  
revocation.

Intestacy If no valid will disposes of property, statutor  
entitlement. no will, partial intestacy, spouse, children  
of statutory order.

Personal representatives Executors and administrators de  
and must administer in correct order. executor, grant, ad  
Distributing before debts, tax and grant issues are resol

Family provision Eligible applicants may seek reasonable  
the estate. dependant, spouse, child, maintenance Treatin  
absolute.

IHT Inheritance tax analysis needs estate value, exemptio  
timing. nil-rate band, spouse exemption, lifetime gift Ca  
identifying taxable estate.

SQE1 Issue Atlas v0.1 | Wills and the Administration of E

## FLK 2

Wills and the Administration of Estates Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

signature Will validity Capacity, intention, knowledge and execution must be checked separately. Assuming a signed will.

witnesses Will validity Capacity, intention, knowledge and execution must be checked separately. Assuming a signed will.

capacity Will validity Capacity, intention, knowledge and execution must be checked separately. Assuming a signed will.

suspicious circumstances Will validity Capacity, intention and formal execution must be checked separately. Assuming always a valid will.

marriage Revocation Marriage, later will, destruction and change the estate plan. Using an old will without checking

codicil Revocation Marriage, later will, destruction and change the estate plan. Using an old will without checking

later will Revocation Marriage, later will, destruction and change the estate plan. Using an old will without checking

no will Intestacy If no valid will disposes of property, determine entitlement. Applying fairness instead of statutory

partial intestacy Intestacy If no valid will disposes of intestacy rules determine entitlement. Applying fairness

spouse Intestacy If no valid will disposes of property, determine entitlement. Applying fairness instead of statutory

children Intestacy If no valid will disposes of property, determine entitlement. Applying fairness instead of statutory

executor Personal representatives Executors and administrators differently and must administer in correct order. Distribution grant issues are resolved.

grant Personal representatives Executors and administrators differently and must administer in correct order. Distribution grant issues are resolved.

administrator Personal representatives E  
differently and must administer in correct order. Distrib  
grant issues are resolved.

estate debts Personal representatives Executors and admin  
differently and must administer in correct order. Distrib  
grant issues are resolved.

dependant Family provision Eligible applicants may seek  
provision from the estate. Treating testamentary freedom

spouse Family provision Eligible applicants may seek reas  
from the estate. Treating testamentary freedom as absolu

child Family provision Eligible applicants may seek reaso  
from the estate. Treating testamentary freedom as absolu

maintenance Family provision Eligible applicants may seek  
provision from the estate. Treating testamentary freedom

nil-rate band IHT Inheritance tax analysis needs estate v  
and payment timing. Calculating tax before identifying ta

spouse exemption IHT Inheritance tax analysis needs esta  
reliefs and payment timing. Calculating tax before ident

lifetime gift IHT Inheritance tax analysis needs estate v  
and payment timing. Calculating tax before identifying ta

SQE1 Issue Atlas v0.1 | Wills and the Administration of I

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Will validity 한국 상속법과 정서적으로 비슷해도 intestacy rules와 probate process는 완전히 별도 암기가 필요하다. Assuming a signed document is always a will

Revocation 한국 상속법과 정서적으로 비슷해도 intestacy rules와 probate process는 완전히 별도 암기가 필요하다. Using an old will without checking revocation

Intestacy 한국 상속법과 정서적으로 비슷해도 intestacy rules와 probate process는 완전히 별도 암기가 필요하다. Applying fairness instead of statutory order

Personal representatives 한국 상속법과 정서적으로 비슷해도 intestacy rules와 probate process는 완전히 별도 암기가 필요하다. Distributing before debts, tax issues are resolved.

Family provision 한국 상속법과 정서적으로 비슷해도 intestacy rules와 probate process는 완전히 별도 암기가 필요하다. Treating testamentary freedom as a right

IHT 한국 상속법과 정서적으로 비슷해도 intestacy rules와 probate process는 완전히 별도 암기가 필요하다. Calculating tax before identifying taxable estate

SQE1 Issue Atlas v0.1 | Wills and the Administration of Estates Korean-Law Pitfalls

Wills and the Administration of Estates Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Statute Wills Act 1837 valid execution and formalities  
<https://www.legislation.gov.uk/>

Statute Administration of Estates Act 1925 intestacy and  
<https://www.legislation.gov.uk/>

Statute Inheritance (Provision for Family and Dependants) claims  
<https://www.legislation.gov.uk/>

Statute Inheritance Tax Act 1984 IHT framework <https://www.legislation.gov.uk/>

Case Banks v Goodfellow (1870) LR 5 QB 549 testamentary capacity  
<https://www.bailii.org/>

SQE1 Issue Atlas v0.1 | Wills and the Administration of Estates

## FLK 2

Wills and the Administration of Estates Issue Cards 1 - 2

Will validity

Rule: Capacity, intention, knowledge and approval, and formalities checked separately.

Trigger: signature, witnesses, capacity, suspicious circumstances

Trap: Assuming a signed document is always a valid will.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Revocation

Rule: Marriage, later will, destruction and express revocation plan.

Trigger: marriage, codicil, later will

Trap: Using an old will without checking revocation.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Wills and the Administration of Estates

## FLK 2

Wills and the Administration of Estates Issue Cards 3 - 4

### Intestacy

Rule: If no valid will disposes of property, statutory intestate entitlement.

Trigger: no will, partial intestacy, spouse, children

Trap: Applying fairness instead of statutory order.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

### Personal representatives

Rule: Executors and administrators derive authority differently in correct order.

Trigger: executor, grant, administrator, estate debts

Trap: Distributing before debts, tax and grant issues arise

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Wills and the Administration of Estates

## FLK 2

Wills and the Administration of Estates Issue Cards 5 - 6

Family provision

Rule: Eligible applicants may seek reasonable financial provision

Trigger: dependant, spouse, child, maintenance

Trap: Treating testamentary freedom as absolute.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

IHT

Rule: Inheritance tax analysis needs estate value, exemption and timing.

Trigger: nil-rate band, spouse exemption, lifetime gift

Trap: Calculating tax before identifying taxable estate.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Wills and the Administration of Estates



## FLK 2

Wills and the Administration of Estates Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Valid will requirements □ rule □ trigger □ trap □ ethics/procedure
- 2 Testamentary capacity □ rule □ trigger □ trap □ ethics/procedure
- 3 Knowledge and approval □ rule □ trigger □ trap □ ethics/procedure
- 4 Undue influence and fraud □ rule □ trigger □ trap □ ethics/procedure
- 5 Revocation of wills □ rule □ trigger □ trap □ ethics/procedure
- 6 Alterations and codicils □ rule □ trigger □ trap □ ethics/procedure
- 7 Intestacy overview □ rule □ trigger □ trap □ ethics/procedure
- 8 Family provision claims □ rule □ trigger □ trap □ ethics/procedure
- 9 Personal representatives □ rule □ trigger □ trap □ ethics/procedure
- 10 Grant of representation □ rule □ trigger □ trap □ ethics/procedure
- 11 Estate administration steps □ rule □ trigger □ trap □ ethics/procedure
- 12 Debts and solvent estates □ rule □ trigger □ trap □ ethics/procedure
- 13 Inheritance tax overview □ rule □ trigger □ trap □ ethics/procedure
- 14 Trusts in wills □ rule □ trigger □ trap □ ethics/procedure
- 15 Probate mixed drill □ rule □ trigger □ trap □ ethics/procedure

마지막 질문: will valid? revoked? beneficiary alive? estate solvent? personal representative power? 순서로 간다.

SQE1 Issue Atlas v0.1 | Wills and the Administration of Estates

# FLK 2

## 11. Trusts Dashboard

Trusts 의 쟁점 대시보드입니다. 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다.

핵심 쟁점

Three certainties

Formalities

Resulting and constructive trusts

Trustee duties

Breach and remedies

Beneficiary rights

공개 권위자료 앵커

Trustee Act 2000 (Statute)

Trusts of Land and Appointment of Trustees Act 1996 (Statute)

Knight v Knight (1840) 3 Beav 148 (Case)

Milroy v Lord (1862) 4 De GF & J 264 (Case)

Saunders v Vautier (1841) 4 Beav 115 (Case)

강사식 한 줄 전략

trust가 성립했는지, trustee가 누구인지, beneficiary가 누구인지, breach와 remedies가 무엇인지 묻는다.

SQE1 Issue Atlas v0.1 | Trusts | dashboard

# FLK 2

## Trusts Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

### 쟁점 핵심 법리 Trigger Trap

Three certainties Express trusts need certainty of intention, objects, wish wording, property, beneficiaries Treating n intention.

Formalities Some trusts require writing or signed evidence separate. land, shares, declaration, transfer Confusing v completed transfer.

Resulting and constructive trusts Equity may recognise bc intention, contribution or unconscionability supports it. failed trust Assuming legal title always equals beneficia

Trustee duties Trustees must act within powers, for proper loyalty and impartiality. investment, conflict, delegation anything beneficiaries approve informally.

Breach and remedies Breach may lead to compensation, account remedies. loss, misapplied asset, third party Using common without equitable remedy analysis.

Beneficiary rights Beneficiaries may enforce trust obligations trust terms and maturity of interests. Saunders v Vautier Assuming any beneficiary can collapse any trust.

SQE1 Issue Atlas v0.1 | Trusts | final grid

## FLK 2

### Trusts Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

wish wording Three certainties Express trusts need certainty of subject matter and objects. Treating moral obligation as trust in

property Three certainties Express trusts need certainty of subject matter and objects. Treating moral obligation as trust in

beneficiaries Three certainties Express trusts need certainty of subject matter and objects. Treating moral obligation as trust in

land Formalities Some trusts require writing or signed evidence and rules are separate. Confusing valid declaration with completed

shares Formalities Some trusts require writing or signed evidence and rules are separate. Confusing valid declaration with completed

declaration Formalities Some trusts require writing or signed evidence and rules are separate. Confusing valid declaration with completed

transfer Formalities Some trusts require writing or signed evidence and rules are separate. Confusing valid declaration with completed

contribution Resulting and constructive trusts Equity may arise in interests where intention, contribution or unconscionable conduct. legal title always equals beneficial ownership.

family home Resulting and constructive trusts Equity may arise in interests where intention, contribution or unconscionable conduct. legal title always equals beneficial ownership.

failed trust Resulting and constructive trusts Equity may arise in interests where intention, contribution or unconscionable conduct. legal title always equals beneficial ownership.

investment Trustee duties Trustees must act within powers, with care, loyalty and impartiality. Assuming trustees can do so, they can approve informally.

conflict Trustee duties Trustees must act within powers, with care, loyalty and impartiality. Assuming trustees can do so, they can approve informally.

delegation Trustee duties Trustees must act within powers, with care, loyalty and impartiality. Assuming trustees can do so, they can approve informally.

loss Breach and remedies Breach may lead to proprietary remedies. Using common law damages language v analysis.

misapplied asset Breach and remedies Breach may lead to tracing or proprietary remedies. Using common law damages remedy analysis.

third party Breach and remedies Breach may lead to competing proprietary remedies. Using common law damages language v analysis.

Saunders v Vautier Beneficiary rights Beneficiaries may enforce but rights depend on trust terms and maturity of interests. A can collapse any trust.

information Beneficiary rights Beneficiaries may enforce rights depend on trust terms and maturity of interests. A collapse any trust.

consent Beneficiary rights Beneficiaries may enforce trust depend on trust terms and maturity of interests. Assuming collapse any trust.

SQE1 Issue Atlas v0.1 | Trusts | trigger map

## T r u s t s   K o r e a n - L a w   P i t f a l l s

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 S Q E 식 함정

T h r e e   c e r t a i n t i e s 한국법에 직접 대응물이 약하므로 '소유자와 수익자의 분리'라는 구조부터 몸에 익혀야 한다. T r e a t i n g   m o r a l   o b l i g a t i o n   a s   t r u s t   i n t e n t

F o r m a l i t i e s 한국법에 직접 대응물이 약하므로 '소유자와 수익자의 분리'라는 구조부터 몸에 익혀야 한다. C o n f u s i n g   v a l i d   d e c l a r a t i o n   w i t h   c o m p l e t e d   t r a

R e s u l t i n g   a n d   c o n s t r u c t i v e   t r u s t s 한국법에 직접 대응물이 약하므로 '소유자와 수익자의 분리'라는 구조부터 몸에 익혀야 한다. A s s u m i n g   l e g a l   t i t l e   a l w a y s   e q u a l s   o w n e r s h i p .

T r u s t e e   d u t i e s 한국법에 직접 대응물이 약하므로 '소유자와 수익자의 분리'라는 구조부터 몸에 익혀야 한다. A s s u m i n g   t r u s t e e s   c a n   d o   a n y t h i n g   b e n e f i c i a r i e s   i n f o r m a l l y .

B r e a c h   a n d   r e m e d i e s 한국법에 직접 대응물이 약하므로 '소유자와 수익자의 분리'라는 구조부터 몸에 익혀야 한다. U s i n g   c o m m o n   l a w   d a m a g e s   l a n g u a g e   w i t h o u t   r e m e d y   a n a l y s i s .

B e n e f i c i a r y   r i g h t s 한국법에 직접 대응물이 약하므로 '소유자와 수익자의 분리'라는 구조부터 몸에 익혀야 한다. A s s u m i n g   a n y   b e n e f i c i a r y   c a n   c o l l a p s e   a n y

## T r u s t s   S o u r c e   A n c h o r s

공개 권위자료 색인입니다 . 판례명과 법령명은 긴 인용용이 아니라 , rule family를 여는 표지판입니다 .

구분   앵커   시험상   기능   확인처

S t a t u t e   T r u s t e e   A c t   2 0 0 0   t r u s t e e   p o w e r s   a n d   d u t i e s   <https://www.legislation.gov.uk/ukpga/2000/25/contents/enacted>

S t a t u t e   T r u s t s   o f   L a n d   a n d   A p p o i n t m e n t   o f   T r u s t e e s   A c t   1 9 2 5  
[https://www.legislation.gov.uk/](https://www.legislation.gov.uk/ukpga/1925/20/contents/enacted)

C a s e   K n i g h t   v   K n i g h t   ( 1 8 4 0 )   3   B e a v   1 4 8   t h r e e   c e r t a i n t i e s

C a s e   M i l r o y   v   L o r d   ( 1 8 6 2 )   4   D e   G F   &   J   2 6 4   c o n s t i t u t i o n   o f   t r u s t  
<https://www.bailii.org/>

C a s e   S a u n d e r s   v   V a u t i e r   ( 1 8 4 1 )   4   B e a v   1 1 5   b e n e f i c i a r y   t e r m  
<https://www.bailii.org/>

S Q E 1   I s s u e   A t l a s   v 0 . 1   |   T r u s t s   |   s o u r c e   a n c h o r s

## FLK 2

### Trusts Issue Cards 1 - 2

#### Three certainties

Rule: Express trusts need certainty of intention, subject

Trigger: wish wording, property, beneficiaries

Trap: Treating moral obligation as trust intention.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

#### Formalities

Rule: Some trusts require writing or signed evidence; co  
separate.

Trigger: land, shares, declaration, transfer

Trap: Confusing valid declaration with completed transfer

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Trusts | issue cards



## FLK 2

Trusts Issue Cards 3 - 4

Resulting and constructive trusts

Rule: Equity may recognise beneficial interests where in unconscionability supports it.

Trigger: contribution, family home, failed trust

Trap: Assuming legal title always equals beneficial ownership

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Trustee duties

Rule: Trustees must act within powers, for proper purposes and impartiality.

Trigger: investment, conflict, delegation

Trap: Assuming trustees can do anything beneficiaries apply

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Trusts | issue cards

## FLK 2

Trusts Issue Cards 5 - 6

Breach and remedies

Rule: Breach may lead to compensation, account, tracing

Trigger: loss, misapplied asset, third party

Trap: Using common law damages language without equitable

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Beneficiary rights

Rule: Beneficiaries may enforce trust obligations, but risk of loss and maturity of interests.

Trigger: Saunders v Vautier, information, consent

Trap: Assuming any beneficiary can collapse any trust.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Trusts | issue cards

## FLK 2

### Trusts Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Trust concept and vocabulary ☐ rule ☐ trigger ☐ trap ☐
- 2 Three certainties ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 3 Formalities ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 4 Constitution of trusts ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 5 Secret trusts overview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 6 Resulting trusts ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 7 Constructive trusts ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 8 Charitable trusts ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 9 Trustees' powers ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 10 Trustees' duties ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 11 Investment duties ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 12 Breach of trust ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 13 Tracing overview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 14 Equitable remedies ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 15 Trusts mixed drill ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure

마지막 질문: trust가 성립했는지, trustee가 누구인지, beneficiary가 누구인지, breach와 remedy가 무엇인지 묻는다.

SQE1 Issue Atlas v0.1 | Trusts | last-day checklist

# FLK 2

## 12. Solicitors Accounts Dashboard

Solicitors Accounts 의 쟁점 대시보드입니다. 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다.

핵심 쟁점

Client money

Client account

Mixed receipts

Withdrawals

Records

Reporting

공개 권위자료 앵커

SRA Accounts Rules (Regulation)

Client money vs business money (Theme)

Mixed receipts (Theme)

Billing and transfers (Theme)

Residual balances (Theme)

강사식 한 줄 전략

돈이 누구 돈인지, 어디에 있어야 하는지, 언제 옮길 수 있는지, 기록과 통지가 필요한지  
순서로 본다.

SQE1 Issue Atlas v0.1 | Solicitors Accounts | dashboard

## FLK 2

### Solicitors Accounts Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

#### 쟁점 핵심 법리 Trigger Trap

Client money First classify money as client money, business advance, disbursement, bill, damages Putting all receipts in client account for convenience.

Client account Client money must be kept separate unless necessary. Client account, third-party managed account Using client account facility.

Mixed receipts Mixed receipts require prompt split and correct recording. VAT plus disbursement Leaving mixed money in client account is office money.

Withdrawals Withdrawal from client account needs a permit and record. bill delivered, transfer, residual balance Withdrawal must be approved in writing.

Records Accurate, current records and reconciliations prove correct. reveal breaches. ledger, reconciliation, suspense account Reconciling at year end.

Reporting Material breaches and risks to client money may require remediation. shortage, misuse, breach, COFA Treating a breach as a breach.

SQE1 Issue Atlas v0.1 | Solicitors Accounts | final grid

## FLK 2

### Solicitors Accounts Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

advance Client money First classify money as client money  
money. Putting all receipts into business account for com

disbursement Client money First classify money as client  
mixed money. Putting all receipts into business account

bill Client money First classify money as client money, b  
money. Putting all receipts into business account for com

damages Client money First classify money as client money  
money. Putting all receipts into business account for com

client account Client account Client money must be kept s  
permits another route. Using client account as a banking

third-party managed account Client account Client money m  
a rule permits another route. Using client account as a b

costs plus damages Mixed receipts Mixed receipts require  
allocation. Leaving mixed money untouched because some o

VAT plus disbursement Mixed receipts Mixed receipts requi  
allocation. Leaving mixed money untouched because some o

bill delivered Withdrawals Withdrawal from client account  
and proper record. Withdrawing because the partner approv

transfer Withdrawals Withdrawal from client account needs  
proper record. Withdrawing because the partner approved

residual balance Withdrawals Withdrawal from client accou  
and proper record. Withdrawing because the partner approv

ledger Records Accurate, current records and reconciliati  
and reveal breaches. Fixing records only at year end.

reconciliation Records Accurate, current records and reco  
money and reveal breaches. Fixing records only at year en

suspense account Records Accurate, current records and re  
client money and reveal breaches. Fixing records only at

shortage Reporting Material breaches and risks to client  
and remediation. Treating a breach as internal only.

misuse Reporting Material breaches and  
and remediation. Treating a breach as internal only.

breach Reporting Material breaches and risks to client mon  
and remediation. Treating a breach as internal only.

COFA Reporting Material breaches and risks to client mon  
remediation. Treating a breach as internal only.

SQE1 Issue Atlas v0.1 | Solicitors Accounts | trigger map

## Solicitors Accounts Korean - Law Pitfalls

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Client money 한국 변호사 보관금 관리 감각은 도움이 되지만 SRA Accounts Rules 용어와 트리거는 별도다. Putting all receipts into business account

Client account 한국 변호사 보관금 관리 감각은 도움이 되지만 SRA Accounts Rules 용어와 트리거는 별도다. Using client account as a banking facility

Mixed receipts 한국 변호사 보관금 관리 감각은 도움이 되지만 SRA Accounts Rules 용어와 트리거는 별도다. Leaving mixed money untouched because some money.

Withdrawals 한국 변호사 보관금 관리 감각은 도움이 되지만 SRA Accounts Rules 용어와 트리거는 별도다. Withdrawing because the partner approved it or a

Records 한국 변호사 보관금 관리 감각은 도움이 되지만 SRA Accounts Rules 용어와 트리거는 별도다. Fixing records only at year end.

Reporting 한국 변호사 보관금 관리 감각은 도움이 되지만 SRA Accounts Rules 용어와 트리거는 별도다. Treating a breach as internal only.

SQE1 Issue Atlas v0.1 | Solicitors Accounts | Korean-law



## FLK 2

Solicitors Accounts Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Regulation SRA Accounts Rules client money and account of  
<https://www.sra.org.uk/solicitors/standards-regulations/>

Theme Client money vs business money first classification  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel-1>

Theme Mixed receipts split and transfer timing  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel-1>

Theme Billing and transfers when client money can move to  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel-1>

Theme Residual balances client protection and record keep  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel-1>

SQE1 Issue Atlas v0.1 | Solicitors Accounts | source anchor

## FLK 2

Solicitors Accounts Issue Cards 1 - 2

Client money

Rule: First classify money as client money, business money

Trigger: advance, disbursement, bill, damages

Trap: Putting all receipts into business account for convenience

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Client account

Rule: Client money must be kept separate unless a rule permits

Trigger: client account, third-party managed account

Trap: Using client account as a banking facility.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Solicitors Accounts | issue cards

## FLK 2

Solicitors Accounts Issue Cards 3 - 4

Mixed receipts

Rule: Mixed receipts require prompt split and correct allocation

Trigger: costs plus damages, VAT plus disbursement

Trap: Leaving mixed money untouched because some of it is

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Withdrawals

Rule: Withdrawal from client account needs a permitted basis

Trigger: bill delivered, transfer, residual balance

Trap: Withdrawing because the partner approved it orally

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Solicitors Accounts | issue cards

## FLK 2

Solicitors Accounts Issue Cards 5 - 6

Records

Rule: Accurate, current records and reconciliations protect against breaches.

Trigger: ledger, reconciliation, suspense account

Trap: Fixing records only at year end.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Reporting

Rule: Material breaches and risks to client money may require remediation.

Trigger: shortage, misuse, breach, COFA

Trap: Treating a breach as internal only.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Solicitors Accounts | issue cards

## Solicitors Accounts Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Client money concept ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 2 Client account and business account ☐ rule ☐ trigger ☐
- 3 Receiving mixed money ☐ rule ☐ trigger ☐ trap ☐ ethics,
- 4 Office money and client money ☐ rule ☐ trigger ☐ trap ☐
- 5 Withdrawals from client account ☐ rule ☐ trigger ☐ trap
- 6 Client's own account ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 7 Banking and timing ☐ rule ☐ trigger ☐ trap ☐ ethics/pro
- 8 Interest and accounting ☐ rule ☐ trigger ☐ trap ☐ ethio
- 9 Bills and transfers ☐ rule ☐ trigger ☐ trap ☐ ethics/pr
- 10 Residual balances ☐ rule ☐ trigger ☐ trap ☐ ethics/pro
- 11 Record keeping ☐ rule ☐ trigger ☐ trap ☐ ethics/proced
- 12 Breaches and reporting ☐ rule ☐ trigger ☐ trap ☐ ethio
- 13 Accounts in conveyancing ☐ rule ☐ trigger ☐ trap ☐ eth
- 14 Accounts in probate ☐ rule ☐ trigger ☐ trap ☐ ethics/p
- 15 Accounts mixed drill ☐ rule ☐ trigger ☐ trap ☐ ethics,

마지막 질문: 돈이 누구 돈인지, 어디에 있어야 하는지, 언제 옮길 수 있는지, 기록과 통지가 필요한지 순서로 본다.

## 13. Criminal Liability Dashboard

Criminal Liability 의 쟁점 대시보드입니다. 이 장의 목적은 모든 세부 설명을 다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는 것입니다.

핵심 쟁점

Actus reus and mens rea

Causation

Dishonesty

Inchoate liability

Secondary liability

Defences

공개 권위자료 앵커

Theft Act 1968 (Statute)

Fraud Act 2006 (Statute)

Criminal Damage Act 1971 (Statute)

Criminal Attempts Act 1981 (Statute)

R v Woollin [1999] 1 AC 82 (Case)

Ivey v Genting Casinos [2017] UKSC 67 (Case)

강사식 한 줄 전략

offence, actus reus, mens rea, causation, defence, burden

SQE1 Issue Atlas v0.1 | Criminal Liability | dashboard

## FLK 2

### Criminal Liability Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

#### 쟁점 핵심 법리 Trigger Trap

Actus reus and mens rea Most offences require both prohibited act and the required mental element. intention, recklessness, negligence. Convicting because harm occurred without mens rea.

Causation For result crimes, factual and legal causation must be established. medical treatment, intervening act, death caused by third party.

Dishonesty Dishonesty questions require the legally relevant facts in the defendant's knowledge/belief context. theft, fraud, blackmail. Defendant's personal moral code as decisive.

Inchoate liability Attempts require acts more than merely preparatory to commit the offence. preparation, attempt, impossible offence, attempt too early.

Secondary liability Participation depends on assistance/encouragement and required mental element. joint enterprise, assistance, joint venture, presence at scene is enough.

Defences Self-defence, duress, intoxication and mistake of fact and law and limits. threat, force, alcohol, mistake Applying one defence to all facts.

SQE1 Issue Atlas v0.1 | Criminal Liability | final grid

## FLK 2

### Criminal Liability Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

intention Actus reus and mens rea Most offences require both conduct/consequence and the required mental element. Conviction occurred without mens rea.

recklessness Actus reus and mens rea Most offences require both conduct/consequence and the required mental element. Conviction occurred without mens rea.

dishonesty Actus reus and mens rea Most offences require both conduct/consequence and the required mental element. Conviction occurred without mens rea.

possession Actus reus and mens rea Most offences require both conduct/consequence and the required mental element. Conviction occurred without mens rea.

medical treatment Causation For result crimes, factual and legal causation. Defendant's conduct to the result. Stopping at 'but for' causation.

intervening act Causation For result crimes, factual and legal causation. Defendant's conduct to the result. Stopping at 'but for' causation.

death Causation For result crimes, factual and legal causation. Defendant's conduct to the result. Stopping at 'but for' causation.

theft Dishonesty Dishonesty questions require the legally defined defendant's knowledge/belief context. Using the defendant's knowledge/belief as decisive.

fraud Dishonesty Dishonesty questions require the legally defined defendant's knowledge/belief context. Using the defendant's knowledge/belief as decisive.

belief Dishonesty Dishonesty questions require the legally defined defendant's knowledge/belief context. Using the defendant's knowledge/belief as decisive.

appropriation Dishonesty Dishonesty questions require the legally defined defendant's knowledge/belief context. Using the defendant's knowledge/belief as decisive.

preparation Inchoate liability Attempts require acts more than preparation and intent to commit the offence. Treating planning as an attempt.

attempt Inchoate liability Attempts require acts more than preparation and intent to commit the offence. Treating planning as an attempt.



intent to commit the offence. Treating p

impossible offence Inchoate liability Attempts require a preparatory and intent to commit the offence. Treating p early.

joint enterprise Secondary liability Participation depends on assistance/encouragement and the required mental element is enough.

assistance Secondary liability Participation depends on the required mental element. Assuming presence at scene

foresight Secondary liability Participation depends on the required mental element. Assuming presence at scene

threat Defences Self-defence, duress, intoxication and availability and limits. Applying one defence to every o

force Defences Self-defence, duress, intoxication and availability and limits. Applying one defence to every o

alcohol Defences Self-defence, duress, intoxication and availability and limits. Applying one defence to every o

mistake Defences Self-defence, duress, intoxication and availability and limits. Applying one defence to every o

SQE1 Issue Atlas v0.1 | Criminal Liability | trigger map

## Criminal Liability Korean - Law Pitfalls

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Actus reus and mens rea 한국 형법과 유사한 사고 틀은 있지만 offences와 defences의 이름과 요건은 영국법 기준으로 외워야 한다. Convicting because harm occurred mens rea.

Causation 한국 형법과 유사한 사고 틀은 있지만 offences와 defences의 이름과 요건은 영국법 기준으로 외워야 한다. Stopping at 'but for' causation.

Dishonesty 한국 형법과 유사한 사고 틀은 있지만 offences와 defences의 이름과 요건은 영국법 기준으로 외워야 한다. Using the defendant's personal moral code

Inchoate liability 한국 형법과 유사한 사고 틀은 있지만 offences와 defences의 이름과 요건은 영국법 기준으로 외워야 한다. Treating planning as attempt too early

Secondary liability 한국 형법과 유사한 사고 틀은 있지만 offences와 defences의 이름과 요건은 영국법 기준으로 외워야 한다. Assuming presence at scene is enough

Defences 한국 형법과 유사한 사고 틀은 있지만 offences와 defences의 이름과 요건은 영국법 기준으로 외워야 한다. Applying one defence to every offence type

SQE1 Issue Atlas v0.1 | Criminal Liability | Korean-law pitfalls

## FLK 2

## Criminal Liability Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용어 아니라, rule family를 여는 표지판입니다.

구분    앵커    시험상    기능    확인처

Statute Theft Act 1968 theft, robbery, burglary <https://www.legislation.gov.uk/ukpga/1968/67/section/1>

Statute Fraud Act 2006 fraud offences <https://www.legislation.gov.uk/ukpga/2006/35/section/1>

Statute Criminal Damage Act 1971 criminal damage <https://www.legislation.gov.uk/ukpga/1971/34/section/1>

Statute Criminal Attempts Act 1981 attempts <https://www.legislation.gov.uk/ukpga/1981/45/section/1>

Case R v Woollin [1999] 1 AC 82 oblique intention [https://www.bailii.org/uk/other/bailii/other\\_uk/other\\_uk.html](https://www.bailii.org/uk/other/bailii/other_uk/other_uk.html)

Case Ivey v Genting Casinos [2017] UKSC 67 dishonesty app  
<https://www.bailii.org/>

SQE1 Issue Atlas v0.1 | Criminal Liability | source anchor

## FLK 2

### Criminal Liability Issue Cards 1 - 2

#### Actus reus and mens rea

Rule: Most offences require both prohibited conduct / consensual mental element.

Trigger: intention, recklessness, dishonesty, possession

Trap: Convicting because harm occurred without mens rea.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

#### Causation

Rule: For result crimes, factual and legal causation must link the act to the result.

Trigger: medical treatment, intervening act, death

Trap: Stopping at 'but for' causation.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Criminal Liability | issue cards

## FLK 2

Criminal Liability Issue Cards 3 - 4

Dishonesty

Rule: Dishonesty questions require the legally relevant knowledge/belief context.

Trigger: theft, fraud, belief, appropriation

Trap: Using the defendant's personal moral code as decision

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Inchoate liability

Rule: Attempts require acts more than merely preparatory offence.

Trigger: preparation, attempt, impossible offence

Trap: Treating planning as attempt too early.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Criminal Liability | issue cards

## FLK 2

Criminal Liability Issue Cards 5 - 6

Secondary liability

Rule: Participation depends on assistance/encouragement and  
element.

Trigger: joint enterprise, assistance, foresight

Trap: Assuming presence at scene is enough.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Defences

Rule: Self-defence, duress, intoxication and mistake have  
limits.

Trigger: threat, force, alcohol, mistake

Trap: Applying one defence to every offence type.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Criminal Liability | issue cards

## FLK 2

### Criminal Liability Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 되면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Actus reus ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 2 Mens rea ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 3 Causation ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 4 Homicide overview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 5 Non-fatal offences ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 6 Theft ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 7 Fraud ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 8 Robbery and burglary ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 9 Criminal damage ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 10 Attempts ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 11 Secondary liability ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 12 Self-defence ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 13 Duress ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 14 Intoxication ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 15 Criminal liability mixed drill ☐ rule ☐ trigger ☐ trap

마지막 질문: offence, actus reus, mens rea, causation, defence  
체크한다.

SQE1 Issue Atlas v0.1 | Criminal Liability | last-day check

## 14. Criminal Law and Practice Dashboard

Criminal Law and Practice 의 쟁점 대시보드입니다. 이 강의 목적은 모든 세부 설  
다시 읽는 것이 아니라, 시험장에서 어떤 rule family를 먼저 꺼낼지 즉시 정하는  
것입니다.

핵심 쟁점

Arrest and detention

Legal advice and interview

Charging and bail

Classification and venue

Disclosure

Sentencing

공개 권위자료 앵커

Police and Criminal Evidence Act 1984 (Statute)

PACE Codes of Practice (Code)

Criminal Procedure Rules (Rules)

Bail (Theme)

Mode of trial (Theme)

Disclosure and evidence (Theme)

강사식 한 줄 전략

arrest/custody, advice, charge, bail, first hearing, allo  
순서로 현재 위치를 잡는다.

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | dashb



## Criminal Law and Practice Final Rule Grid

이 표는 쟁점 이름, 핵심 법리, 문제 단서, 오답 함정을 한 줄로 묶은 final grid입니다.

쟁점 핵심 법리 Trigger Trap

Arrest and detention Police powers require lawful basis, after detention. arrest, custody clock, detention review because suspicion exists.

Legal advice and interview A suspect's right to advice and legal representation can be refused if it would affect fairness and evidence. PACE, solicitor, adverse inference. Advising silence or answering without considering disclosure.

Charging and bail Charging route and bail depend on offer of guilty plea and bail conditions. charge, bail, remand, conditions Treating bail as a condition.

Classification and venue Summary, either-way and indictable only. Summary trial, either-way trial, indictment drives first hearing and trial route. mode of trial, plea and trial. Choosing Crown Court because facts are serious without clear indication.

Disclosure Prosecution and defence disclosure rules shape the trial. Disclosure of unused material, defence statement, CPIA Assuming only relevant material.

Sentencing Sentence depends on offence seriousness, culpability, aggravating and mitigating factors, plea, mitigation and powers of court. guilty plea, aggravating factors, mitigation. Jumping to sentence without court powers and guideline sentencing.

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | final

## FLK 2

### Criminal Law and Practice Trigger Map

Trigger map입니다. 문제를 읽을 때 아래 단어가 보이면 바로 오른쪽 쟁점으로 연결합니다.

보이는 단어 열리는 쟁점 먼저 꺼낼 rule 주의할 함정

arrest Arrest and detention Police powers require lawful safeguards after detention. Assuming arrest is lawful be

custody clock Arrest and detention Police powers require safeguards after detention. Assuming arrest is lawful be

detention review Arrest and detention Police powers require and safeguards after detention. Assuming arrest is lawful

PACE Legal advice and interview A suspect's right to adv affect fairness and evidence. Advising silence or answer disclosure and inference.

solicitor Legal advice and interview A suspect's right to safeguards affect fairness and evidence. Advising silence considering disclosure and inference.

adverse inference Legal advice and interview A suspect's interview safeguards affect fairness and evidence. Advis without considering disclosure and inference.

vulnerable suspect Legal advice and interview A suspect's interview safeguards affect fairness and evidence. Advis without considering disclosure and inference.

charge Charging and bail Charging route and bail depend on and conditions. Treating bail as automatic.

bail Charging and bail Charging route and bail depend on conditions. Treating bail as automatic.

remand Charging and bail Charging route and bail depend on and conditions. Treating bail as automatic.

conditions Charging and bail Charging route and bail depend on risk and conditions. Treating bail as automatic.

mode of trial Classification and venue Summary, either-way classification drives first hearing and trial route. Cho facts are serious without classifying offence.

plea before venue Classification and venue Summary, either classification drives first hearing and trial route. Cho facts are serious without classifying offence.

allocation Classification and venue Summary  
classification drives first hearing and trial route. Choice of  
facts are serious without classifying offence.

unused material Disclosure Prosecution and defence disclosure  
preparation and fairness. Assuming only relied-on evidence

defence statement Disclosure Prosecution and defence disclosure  
preparation and fairness. Assuming only relied-on evidence

CPIA Disclosure Prosecution and defence disclosure rules  
fairness. Assuming only relied-on evidence matters.

guilty plea Sentencing Sentence depends on offence seriousness  
plea, mitigation and powers of court. Jumping to sentencing  
guideline structure.

aggravating Sentencing Sentence depends on offence seriousness  
plea, mitigation and powers of court. Jumping to sentencing  
guideline structure.

mitigation Sentencing Sentence depends on offence seriousness  
plea, mitigation and powers of court. Jumping to sentencing  
guideline structure.

allocation Sentencing Sentence depends on offence seriousness  
plea, mitigation and powers of court. Jumping to sentencing  
guideline structure.

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | triggered

## Criminal Law and Practice Korean-Law Pitfalls

한국변호사 관점의 함정 정리입니다. 익숙한 개념일수록 더 위험합니다. 같은 단어가 같은 요건을 뜻하지 않을 수 있습니다.

쟁점 한국변호사 주의점 SQE식 함정

Arrest and detention 한국 형사절차와 단계가 비슷해도 custody clock, mode of trial, disclosure, plea before venue 같은 용어가 다르다. Assuming arrest without suspicion exists.

Legal advice and interview 한국 형사절차와 단계가 비슷해도 custody clock, mode of trial, disclosure, plea before venue 같은 용어가 다르다. Advising without legal advice and answering without considering disclosure and inference.

Charging and bail 한국 형사절차와 단계가 비슷해도 custody clock, mode of trial, disclosure, plea before venue 같은 용어가 다르다. Treating bail as a condition of release.

Classification and venue 한국 형사절차와 단계가 비슷해도 custody clock, mode of trial, disclosure, plea before venue 같은 용어가 다르다. Choosing venue because facts are serious without classifying offence.

Disclosure 한국 형사절차와 단계가 비슷해도 custody clock, mode of trial, disclosure, plea before venue 같은 용어가 다르다. Assuming only relied-on evidence is disclosed.

Sentencing 한국 형사절차와 단계가 비슷해도 custody clock, mode of trial, disclosure, plea before venue 같은 용어가 다르다. Jumping to sentence without guideline structure.

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | Korea

### Criminal Law and Practice Source Anchors

공개 권위자료 색인입니다. 판례명과 법령명은 긴 인용용이 아니라, rule family를 여는 표지판입니다.

구분 앵커 시험상 기능 확인처

Statute Police and Criminal Evidence Act 1984 arrest, de  
<https://www.legislation.gov.uk/>

Code PACE Codes of Practice custody and interview safegua  
<https://www.gov.uk/guidance/police-and-criminal-evidence-tice>

Rules Criminal Procedure Rules criminal case management  
<https://www.gov.uk/guidance/rules-and-practice-directions>

Theme Bail pre-trial liberty and conditions  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel->

Theme Mode of trial summary/either-way/indictable route  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel->

Theme Disclosure and evidence fair trial preparation  
<https://sqe.sra.org.uk/assessments/sqel-assessments/sqel->

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | source

## FLK 2

Criminal Law and Practice Issue Cards 1 - 2

Arrest and detention

Rule: Police powers require lawful basis, necessity and s

Trigger: arrest, custody clock, detention review

Trap: Assuming arrest is lawful because suspicion exists

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Legal advice and interview

Rule: A suspect's right to advice and interview safeguard evidence.

Trigger: PACE, solicitor, adverse inference, vulnerable s

Trap: Advising silence or answering without considering c

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | issue

## FLK 2

Criminal Law and Practice Issue Cards 3 - 4

Charging and bail

Rule: Charging route and bail depend on offence, evidence

Trigger: charge, bail, remand, conditions

Trap: Treating bail as automatic.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

Classification and venue

Rule: Summary, either-way and indictable-only classification and trial route.

Trigger: mode of trial, plea before venue, allocation

Trap: Choosing Crown Court because facts are serious with

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | issue

## FLK 2

Criminal Law and Practice Issue Cards 5 - 6

### Disclosure

Rule: Prosecution and defence disclosure rules shape prep

Trigger: unused material, defence statement, CPIA

Trap: Assuming only relied-on evidence matters.

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

### Sentencing

Rule: Sentence depends on offence seriousness, culpability  
and powers of court.

Trigger: guilty plea, aggravating, mitigation, allocation

Trap: Jumping to sentence without court powers and guidance

30초 말하기: 이 쟁점은 어떤 사실에서 시작하고, 지금 단계에서 어떤 답을 허용하는가?

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | issue



## FLK 2

### Criminal Law and Practice Last-Day Checklist

시험 전날 체크리스트입니다. 체크가 비면 교재로 돌아가지 말고 먼저 issue atlas의 rule grid와 문제집 오답표를 봅니다.

No. 세부 주제 체크

- 1 Police powers and arrest ☐ rule ☐ trigger ☐ trap ☐ ethics
- 2 Detention and custody time ☐ rule ☐ trigger ☐ trap ☐ ethics
- 3 Right to legal advice ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 4 Police interview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 5 Charging decisions ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 6 Bail ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 7 First hearing ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 8 Classification of offences ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 9 Plea before venue ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 10 Mode of trial ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 11 Disclosure ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 12 Evidence basics ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 13 Trial process ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 14 Sentencing overview ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure
- 15 Criminal practice mixed drill ☐ rule ☐ trigger ☐ trap ☐ ethics/procedure

마지막 질문: arrest/custody, advice, charge, bail, first hearing, sentence 순서로 현재 위치를 잡는다.

SQE1 Issue Atlas v0.1 | Criminal Law and Practice | last day